

1 ENGROSSED HOUSE AMENDMENT  
TO  
2 ENGROSSED SENATE BILL NO. 1257 By: Hamilton of the Senate  
3 and  
4 Turner of the House  
5  
6

7 An Act relating to the Uniform Controlled Dangerous  
8 Substances Act; amending 63 O.S. 2021, Section 2-101,  
as last amended by Section 8, Chapter 343, O.S.L.  
2025 (63 O.S. Supp. 2025, Section 2-101), which  
9 relates to definitions; modifying terms; amending 63  
O.S. 2021, Section 2-204, as last amended by Section  
10 3, Chapter 308, O.S.L. 2024 (63 O.S. Supp. 2025,  
Section 2-204), which relates to Schedule I; adding  
11 substance; amending 63 O.S. 2021, Section 2-208,  
which relates to Schedule III; adding substance;  
12 removing substance; conforming statutory language;  
and providing an effective date.  
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15 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill  
and insert:  
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18 "An Act relating to the Uniform Controlled Dangerous  
19 Substances Act; amending 63 O.S. 2021, Section 2-101,  
as last amended by Section 8, Chapter 343, O.S.L.  
2025 (63 O.S. Supp. 2025, Section 2-101), which  
20 relates to definitions; modifying definitions;  
amending 63 O.S. 2021, Section 2-204, as last amended  
21 by Section 3, Chapter 308, O.S.L. 2024 (63 O.S. Supp.  
2025, Section 2-204), which relates to Schedule I;  
22 adding substance; amending 63 O.S. 2021, Section 2-  
208, which relates to Schedule III; adding substance;  
23 removing substance; and providing an effective date.  
24

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. AMENDATORY 63 O.S. 2021, Section 2-101, as  
3 last amended by Section 8, Chapter 343, O.S.L. 2025 (63 O.S. Supp.  
4 2025, Section 2-101), is amended to read as follows:

5 Section 2-101. As used in the Uniform Controlled Dangerous  
6 Substances Act:

7 1. "Acute pain" means pain, whether resulting from disease,  
8 accidental trauma, intentional trauma, or other cause that the  
9 practitioner reasonably expects to last only a short period of time.  
10 Acute pain does not include chronic pain, pain being treated as part  
11 of cancer care, hospice or other end-of-life care, or pain being  
12 treated as part of palliative care;

13 2. "Administer" means the direct application of a controlled  
14 dangerous substance, whether by injection, inhalation, ingestion or  
15 any other means, to the body of a patient, animal or research  
16 subject by:

17 a. a practitioner (or, in the presence of the  
18 practitioner, by the authorized agent of the  
19 practitioner), or

20 b. the patient or research subject at the direction and  
21 in the presence of the practitioner;

22 3. "Agent" means a peace officer appointed by and who acts on  
23 behalf of the Director of the Oklahoma State Bureau of Narcotics and  
24 Dangerous Drugs Control or an authorized person who acts on behalf

1 of or at the direction of a person who manufactures, distributes,  
2 dispenses, prescribes, administers or uses for scientific purposes  
3 controlled dangerous substances but does not include a common or  
4 contract carrier, public warehouseman or employee thereof, or a person  
5 required to register under the Uniform Controlled Dangerous  
6 Substances Act;

7 4. "Anhydrous ammonia" means any substance that exhibits  
8 cryogenic evaporative behavior and tests positive for ammonia;

9 5. "Board" means the Advisory Board to the Director of the  
10 Oklahoma State Bureau of Narcotics and Dangerous Drugs Control;

11 6. "Bureau" means the Oklahoma State Bureau of Narcotics and  
12 Dangerous Drugs Control;

13 7. "Chronic pain" means pain that persists beyond the usual  
14 course of an acute disease or healing of an injury. Chronic pain  
15 may or may not be associated with an acute or chronic pathologic  
16 process that causes continuous or intermittent pain over months or  
17 years;

18 8. "Coca leaves" includes cocaine and any compound,  
19 manufacture, salt, derivative, mixture or preparation of coca  
20 leaves, except derivatives of coca leaves which do not contain  
21 cocaine or ecgonine;

22 9. "Commissioner" or "Director" means the Director of the  
23 Oklahoma State Bureau of Narcotics and Dangerous Drugs Control;

1        10. "Control" means to add, remove or change the placement of a  
2 drug, substance or immediate precursor under the Uniform Controlled  
3 Dangerous Substances Act;

4        11. "Controlled dangerous substance" means a drug, substance or  
5 immediate precursor in Schedules I through V of the Uniform  
6 Controlled Dangerous Substances Act or any drug, substance or  
7 immediate precursor listed either temporarily or permanently as a  
8 federally controlled substance. Any conflict between state and  
9 federal law with regard to the particular schedule in which a  
10 substance is listed shall be resolved in favor of state law;

11       12. "Counterfeit substance" means a controlled substance which,  
12 or the container or labeling of which without authorization, bears  
13 the trademark, trade name or other identifying marks, imprint,  
14 number or device or any likeness thereof of a manufacturer,  
15 distributor or dispenser other than the person who in fact  
16 manufactured, distributed or dispensed the substance;

17       13. "Deliver" or "delivery" means the actual, constructive or  
18 attempted transfer from one person to another of a controlled  
19 dangerous substance or drug paraphernalia, whether or not there is  
20 an agency relationship;

21       14. "Dispense" means to deliver a controlled dangerous  
22 substance to an ultimate user or human research subject by or  
23 pursuant to the lawful order of a practitioner, including the  
24 prescribing, administering, packaging, labeling or compounding

1 necessary to prepare the substance for such distribution.

2 "Dispenser" is a practitioner who delivers a controlled dangerous  
3 substance to an ultimate user or human research subject;

4 15. "Distribute" means to deliver other than by administering  
5 or dispensing a controlled dangerous substance;

6 16. "Distributor" means a commercial entity engaged in the  
7 distribution or reverse distribution of narcotics and dangerous  
8 drugs and who complies with all regulations promulgated by the  
9 federal Drug Enforcement Administration and the Oklahoma State  
10 Bureau of Narcotics and Dangerous Drugs Control;

11 17. "Drug" means articles:

12 a. recognized in the official United States Pharmacopeia,  
13 official Homeopathic Pharmacopoeia of the United  
14 States, or official National Formulary, or any  
15 supplement to any of them,

16 b. intended for use in the diagnosis, cure, mitigation,  
17 treatment or prevention of disease in man or other  
18 animals,

19 c. other than food, intended to affect the structure or  
20 any function of the body of man or other animals, and

21 d. intended for use as a component of any article  
22 specified in this paragraph;

23 provided, however, the term drug does not include devices or their  
24 components, parts or accessories;

1        18. "Drug paraphernalia" means all equipment, products, and  
2 materials of any kind which are used, intended for use, or fashioned  
3 specifically for use in planting, propagating, cultivating, growing,  
4 harvesting, manufacturing, compounding, converting, producing,  
5 processing, preparing, testing, analyzing, packaging, repackaging,  
6 storing, containing, concealing, injecting, ingesting, inhaling, or  
7 otherwise introducing into the human body, a controlled dangerous  
8 substance in violation of the Uniform Controlled Dangerous  
9 Substances Act including, but not limited to:

- 10            a. kits used, intended for use, or fashioned specifically  
11                for use in planting, propagating, cultivating,  
12                growing, or harvesting of any species of plant which  
13                is a controlled dangerous substance or from which a  
14                controlled dangerous substance can be derived,  
15            b. kits used, intended for use, or fashioned specifically  
16                for use in manufacturing, compounding, converting,  
17                producing, processing, or preparing controlled  
18                dangerous substances,  
19            c. isomerization devices used, intended for use, or  
20                fashioned specifically for use in increasing the  
21                potency of any species of plant which is a controlled  
22                dangerous substance,  
23            d. testing equipment used, intended for use, or fashioned  
24                specifically for use in identifying or in analyzing

- 1 the strength, effectiveness, or purity of controlled  
2 dangerous substances,
- 3 e. scales and balances used, intended for use, or  
4 fashioned specifically for use in weighing or  
5 measuring controlled dangerous substances,
- 6 f. diluents and adulterants, such as quinine  
7 hydrochloride, mannitol, mannite, dextrose, and  
8 lactose used, intended for use, or fashioned  
9 specifically for use in cutting controlled dangerous  
10 substances,
- 11 g. separation gins and sifters used, intended for use, or  
12 fashioned specifically for use in removing twigs and  
13 seeds from, or in otherwise cleaning or refining,  
14 marijuana,
- 15 h. blenders, bowls, containers, spoons, and mixing  
16 devices used, intended for use, or fashioned  
17 specifically for use in compounding controlled  
18 dangerous substances,
- 19 i. capsules, balloons, envelopes, and other containers  
20 used, intended for use, or fashioned specifically for  
21 use in packaging small quantities of controlled  
22 dangerous substances,
- 23 j. containers and other objects used, intended for use,  
24 or fashioned specifically for use in parenterally

1 injecting controlled dangerous substances into the  
2 human body,

3 k. hypodermic syringes, needles, and other objects used,  
4 intended for use, or fashioned specifically for use in  
5 parenterally injecting controlled dangerous substances  
6 into the human body, except as authorized by Section  
7 2-1101 of this title,

8 l. objects used, intended for use, or fashioned  
9 specifically for use in ingesting, inhaling, or  
10 otherwise introducing marijuana, cocaine, hashish, or  
11 hashish oil into the human body, such as:

12 (1) metal, wooden, acrylic, glass, stone, plastic, or  
13 ceramic pipes with or without screens, permanent  
14 screens, hashish heads, or punctured metal bowls,

15 (2) water pipes,

16 (3) carburetion tubes and devices,

17 (4) smoking and carburetion masks,

18 (5) roach clips, meaning objects used to hold burning  
19 material, such as a marijuana cigarette, that has  
20 become too small or too short to be held in the  
21 hand,

22 (6) miniature cocaine spoons and cocaine vials,

23 (7) chamber pipes,

24 (8) carburetor pipes,



- 1 (9) electric pipes,  
2 (10) air-driven pipes,  
3 (11) chillums,  
4 (12) bonges, or  
5 (13) ice pipes or chillers,  
6 m. all hidden or novelty pipes, and  
7 n. any pipe that has a tobacco bowl or chamber of less  
8 than one-half (1/2) inch in diameter in which there is  
9 any detectable residue of any controlled dangerous  
10 substance as defined in this section or any other  
11 substances not legal for possession or use;

12 provided, however, the term drug paraphernalia shall not include  
13 separation gins intended for use in preparing tea or spice, clamps  
14 used for constructing electrical equipment, water pipes designed for  
15 ornamentation in which no detectable amount of an illegal substance  
16 is found or pipes designed and used solely for smoking tobacco,  
17 traditional pipes of an American Indian tribal religious ceremony,  
18 antique pipes that are thirty (30) years of age or older, or drug  
19 testing strips possessed by a person for purposes of determining the  
20 presence of fentanyl or a fentanyl-related compound;

21 19. "Drug-dependent person" means a person who is using a  
22 controlled dangerous substance and who is in a state of psychic or  
23 physical dependence, or both, arising from administration of that  
24 controlled dangerous substance on a continuous basis. Drug

1 dependence is characterized by behavioral and other responses which  
2 include a strong compulsion to take the substance on a continuous  
3 basis in order to experience its psychic effects, or to avoid the  
4 discomfort of its absence;

5 20. "Harm-reduction services" means programs established to:

- 6 a. reduce the spread of infectious diseases related to  
7 injection drug use,
- 8 b. reduce drug dependency, overdose deaths, and  
9 associated complications, and
- 10 c. increase safe recovery and disposal of used syringes  
11 and sharp waste;

12 21. "Hazardous materials" means materials, whether solid,  
13 liquid, or gas, which are toxic to human, animal, aquatic, or plant  
14 life, and the disposal of such materials is controlled by state or  
15 federal guidelines;

16 22. "Home care agency" means any sole proprietorship,  
17 partnership, association, corporation, or other organization which  
18 administers, offers, or provides home care services, for a fee or  
19 pursuant to a contract for such services, to clients in their place  
20 of residence;

21 23. "Home care services" means skilled or personal care  
22 services provided to clients in their place of residence for a fee;

23 24. "Hospice" means a centrally administered, nonprofit or for-  
24 profit, medically directed, nurse-coordinated program which provides

1 a continuum of home and inpatient care for the terminally ill  
2 patient and the patient's family. Such term shall also include a  
3 centrally administered, nonprofit or for-profit, medically directed,  
4 nurse-coordinated program if such program is licensed pursuant to  
5 the provisions of the Uniform Controlled Dangerous Substances Act.  
6 A hospice program offers palliative and supportive care to meet the  
7 special needs arising out of the physical, emotional and spiritual  
8 stresses which are experienced during the final stages of illness  
9 and during dying and bereavement. This care is available twenty-  
10 four (24) hours a day, seven (7) days a week, and is provided on the  
11 basis of need, regardless of ability to pay. "Class A" Hospice  
12 refers to Medicare-certified hospices. "Class B" refers to all  
13 other providers of hospice services;

14 25. "Imitation controlled substance" means a substance that is  
15 not a controlled dangerous substance, which by dosage unit  
16 appearance, color, shape, size, markings or by representations made,  
17 would lead a reasonable person to believe that the substance is a  
18 controlled dangerous substance, or is a drug intended solely for  
19 veterinary purposes that is not a controlled dangerous substance and  
20 is being used outside of the scope of practice or normal course of  
21 business, as defined by the State Board of Veterinary Medical  
22 Examiners, or is a federal Food and Drug Administration-approved  
23 drug that is not a controlled dangerous substance and is being used  
24 outside the scope of approval for illicit purposes such as

1 adulterating or lacing other controlled dangerous substances. In  
2 the event the appearance of the dosage unit or use is not reasonably  
3 sufficient to establish that the substance is an imitation  
4 controlled substance, the court or authority concerned should  
5 consider, in addition to all other factors, the following factors:

- 6 a. statements made by an owner or by any other person in  
7 control of the substance concerning the nature of the  
8 substance, or its use or effect,
- 9 b. statements made to the recipient that the substance  
10 may be resold for inordinate profit,
- 11 c. whether the substance is packaged in a manner normally  
12 used for illicit controlled substances,
- 13 d. evasive tactics or actions utilized by the owner or  
14 person in control of the substance to avoid detection  
15 by law enforcement authorities,
- 16 e. prior convictions, if any, of an owner, or any other  
17 person in control of the object, under state or  
18 federal law related to controlled substances or fraud,  
19 and
- 20 f. the proximity of the substances to controlled  
21 dangerous substances;

22 26. "Immediate precursor" means a substance which the Director  
23 has found to be and by regulation designates as being the principal  
24 compound commonly used or produced primarily for use, and which is

1 an immediate chemical intermediary used, or likely to be used, in  
2 the manufacture of a controlled dangerous substance, the control of  
3 which is necessary to prevent, curtail or limit such manufacture;

4 27. "Initial prescription" means a prescription issued to a  
5 patient who:

6 a. has never previously been issued a prescription for  
7 the drug or its pharmaceutical equivalent in the past  
8 year, or

9 b. requires a prescription for the drug or its  
10 pharmaceutical equivalent due to a surgical procedure  
11 or new acute event and has previously had a  
12 prescription for the drug or its pharmaceutical  
13 equivalent within the past year.

14 When determining whether a patient was previously issued a  
15 prescription for a drug or its pharmaceutical equivalent, the  
16 practitioner shall consult with the patient and review the medical  
17 record and prescription monitoring information of the patient;

18 28. "Isomer" means the optical isomer, except as used in  
19 subsections C and F of Section 2-204 of this title and paragraph 4  
20 of subsection A of Section 2-206 of this title. As used in  
21 subsections C and F of Section 2-204 of this title, isomer means the  
22 optical, positional, or geometric isomer. As used in paragraph 4 of  
23 subsection A of Section 2-206 of this title, the term isomer means  
24 the optical or geometric isomer;

1        29. "Laboratory" means a laboratory approved by the Director as  
2 proper to be entrusted with the custody of controlled dangerous  
3 substances and the use of controlled dangerous substances for  
4 scientific and medical purposes and for purposes of instruction;

5        30. "Manufacture" means the production, preparation,  
6 propagation, compounding or processing of a controlled dangerous  
7 substance, either directly or indirectly by extraction from  
8 substances of natural or synthetic origin, or independently by means  
9 of chemical synthesis or by a combination of extraction and chemical  
10 synthesis. "Manufacturer" includes any person who packages,  
11 repackages or labels any container of any controlled dangerous  
12 substance, except practitioners who dispense or compound  
13 prescription orders for delivery to the ultimate consumer;

14        31. "Marijuana" means all parts of the Cannabis plant ~~Cannabis~~  
15 ~~sativa L.~~, whether growing or not; the seeds thereof; the resin  
16 extracted from any part of such plant; and every compound,  
17 manufacture, salt, derivative, mixture, or preparation of such  
18 plant, its seeds, or resin; tetrahydrocannabinols, neutral  
19 compounds, and their corresponding acids, including synthetic  
20 equivalents of the substances contained in the Cannabis plant or in  
21 the resinous extractives of Cannabis, or synthetic substances,  
22 derivatives, and their isomers with similar chemical structure and  
23 pharmacological activity, but shall not include:  
24

- a. the mature stalks of such plant or fiber produced from such stalks,
- b. oil or cake made from the seeds of such plant, including cannabidiol derived from the seeds of the marijuana plant,
- c. any other compound, manufacture, salt, derivative, mixture or preparation of such mature stalks (except the resin extracted therefrom), including cannabidiol derived from mature stalks, fiber, oil or cake,
- d. the sterilized seed of such plant which is incapable of germination,
- e. for any person participating in a clinical trial to administer cannabidiol for the treatment of severe forms of epilepsy pursuant to Section 2-802 of this title, a drug or substance approved by the federal Food and Drug Administration for use by those participants,
- f. for any person or the parents, legal guardians or caretakers of the person who have received a written certification from a physician licensed in this state that the person has been diagnosed by a physician as having Lennox-Gastaut syndrome, Dravet syndrome, also known as severe myoclonic epilepsy of infancy, or any other severe form of epilepsy that is not adequately

1 treated by traditional medical therapies, spasticity  
2 due to multiple sclerosis or due to paraplegia,  
3 intractable nausea and vomiting, appetite stimulation  
4 with chronic wasting diseases, the substance  
5 cannabidiol, a nonpsychoactive cannabinoid, found in  
6 the Cannabis plant ~~Cannabis sativa L.~~ or any other  
7 preparation thereof, that has a tetrahydrocannabinol  
8 concentration not more than three-tenths of one  
9 percent (0.3%) and that is delivered to the patient in  
10 the form of a liquid,

11 g. any federal Food and Drug Administration-approved drug  
12 or substance, or

13 h. industrial hemp, from the Cannabis plant ~~Cannabis~~  
14 ~~sativa L.~~ and any part of such plant, whether growing  
15 or not, with a combined delta-9 tetrahydrocannabinol  
16 and tetrahydrocannabinolic acid concentration not more  
17 than three-tenths of one percent (0.3%) on a dry-  
18 weight basis, as tested using post-decarboxylation or  
19 other similarly reliable methods, which shall only be  
20 grown pursuant to the Oklahoma Industrial Hemp Program  
21 and may be shipped intrastate and interstate;

22 32. "Medical purpose" means an intention to utilize a  
23 controlled dangerous substance for physical or mental treatment, for  
24 diagnosis, or for the prevention of a disease condition not in



1 violation of any state or federal law and not for the purpose of  
2 satisfying physiological or psychological dependence or other abuse;

3 33. "Mid-level practitioner" means an Advanced Practice  
4 Registered Nurse as defined and within parameters specified in  
5 Section 567.3a of Title 59 of the Oklahoma Statutes, or a certified  
6 animal euthanasia technician as defined in Section 698.2 of Title 59  
7 of the Oklahoma Statutes, or an animal control officer registered by  
8 the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control  
9 under subsection B of Section 2-301 of this title within the  
10 parameters of such officer's duties under Sections 501 through 508  
11 of Title 4 of the Oklahoma Statutes;

12 34. "Narcotic drug" means any of the following, whether  
13 produced directly or indirectly by extraction from substances of  
14 vegetable origin, or independently by means of chemical synthesis,  
15 or by a combination of extraction and chemical synthesis:

- 16 a. opium, coca leaves and opiates,
- 17 b. a compound, manufacture, salt, derivative or  
18 preparation of opium, coca leaves or opiates,
- 19 c. cocaine, its salts, optical and geometric isomers, and  
20 salts of isomers,
- 21 d. ecgonine, its derivatives, their salts, isomers and  
22 salts of isomers, and
- 23 e. a substance, and any compound, manufacture, salt,  
24 derivative or preparation thereof, which is chemically

1 identical with any of the substances referred to in  
2 subparagraphs a through d of this paragraph, except  
3 that the words narcotic drug as used in Section 2-101  
4 et seq. of this title shall not include decocainized  
5 coca leaves or extracts of coca leaves, which extracts  
6 do not contain cocaine or ecgonine;

7 35. "Opiate" or "opioid" means any Schedule II, III, IV or V  
8 substance having an addiction-forming or addiction-sustaining  
9 liability similar to morphine or being capable of conversion into a  
10 drug having such addiction-forming or addiction-sustaining  
11 liability. The terms do not include, unless specifically designated  
12 as controlled under the Uniform Controlled Dangerous Substances Act,  
13 the dextrorotatory isomer of 3-methoxy-n-methyl-morphinan and its  
14 salts (dextromethorphan). The terms do include the racemic and  
15 levorotatory forms;

16 36. "Opium poppy" means the plant of the species *Papaver*  
17 *somniferum* L., except the seeds thereof;

18 37. "Palliative care" means a specialized medical service for  
19 people of any age and at any stage of a serious illness or life-  
20 altering medical event that focuses on navigating complex medical  
21 decisions while providing patient autonomy and access to  
22 information. Utilizing a holistic and interdisciplinary team  
23 approach, palliative care addresses physical, intellectual,  
24 emotional, social, and spiritual needs. Palliative care may be

1 provided in the inpatient, outpatient, or home care setting and  
2 strives to improve quality of life for both the patient and the  
3 family;

4 38. "Patient-provider agreement" means a written contract or  
5 agreement that is executed between a practitioner and a patient  
6 prior to the commencement of treatment for chronic pain using an  
7 opioid drug as a means to:

- 8 a. explain the possible risk of development of physical  
9 or psychological dependence in the patient and prevent  
10 the possible development of addiction,
- 11 b. document the understanding of both the practitioner  
12 and the patient regarding the patient-provider  
13 agreement of the patient,
- 14 c. establish the rights of the patient in association  
15 with treatment and the obligations of the patient in  
16 relation to the responsible use, discontinuation of  
17 use, and storage of opioid drugs, including any  
18 restrictions on the refill of prescriptions or the  
19 acceptance of opioid prescriptions from practitioners,
- 20 d. identify the specific medications and other modes of  
21 treatment, including physical therapy or exercise,  
22 relaxation, or psychological counseling, that are  
23 included as a part of the patient-provider agreement,

- 1           e.    specify the measures the practitioner may employ to  
2                monitor the compliance of the patient including, but  
3                not limited to, random specimen screens and pill  
4                counts, and
- 5           f.    delineate the process for terminating the agreement,  
6                including the consequences if the practitioner has  
7                reason to believe that the patient is not complying  
8                with the terms of the agreement.  Compliance with the  
9                consent items described in this paragraph shall  
10              constitute a valid, informed consent for opioid  
11              therapy.  The practitioner shall be held harmless from  
12              civil litigation for failure to treat pain if the  
13              event occurs because of nonadherence by the patient  
14              with any of the provisions of the patient-provider  
15              agreement;

16        39.  "Peace officer" means a police officer, sheriff, deputy  
17        sheriff, district attorney's investigator, investigator from the  
18        Office of the Attorney General, or any other person elected or  
19        appointed by law to enforce any of the criminal laws of this state  
20        or of the United States;

21        40.  "Person" means an individual, corporation, government or  
22        governmental subdivision or agency, business trust, estate, trust,  
23        partnership or association, or any other legal entity;

24

1       41. "Poppy straw" means all parts, except the seeds, of the  
2 opium poppy, after mowing;

3       42. "Practitioner" means:

- 4           a.     (1)   a medical doctor or osteopathic physician,  
5                   (2)   a dentist,  
6                   (3)   a podiatrist,  
7                   (4)   an optometrist,  
8                   (5)   a veterinarian,  
9                   (6)   an Advanced Practice Registered Nurse under the  
10                   supervision of a licensed medical doctor or  
11                   osteopathic physician, or a physician assistant,  
12                   (7)   a scientific investigator, or  
13                   (8)   any other person,  
14                licensed, registered or otherwise permitted to  
15                prescribe, distribute, dispense, conduct research with  
16                respect to, use for scientific purposes or administer  
17                a controlled dangerous substance in the course of  
18                professional practice or research in this state, or  
19           b.     a pharmacy, hospital, laboratory or other institution  
20                   licensed, registered or otherwise permitted to  
21                   distribute, dispense, conduct research with respect  
22                   to, use for scientific purposes or administer a  
23                   controlled dangerous substance in the course of  
24                   professional practice or research in this state;

1       43. "Production" includes the manufacture, planting,  
2 cultivation, growing or harvesting of a controlled dangerous  
3 substance;

4       44. "Serious illness" means a medical illness or physical  
5 injury or condition that substantially affects quality of life for  
6 more than a short period of time. Serious illness includes, but is  
7 not limited to, Alzheimer's disease or related dementias, lung  
8 disease, cancer, heart failure, renal failure, liver failure, or  
9 chronic, unremitting, or intractable pain such as neuropathic pain;

10       45. "State" means the State of Oklahoma or any other state of  
11 the United States;

12       46. "Straw person" or "straw party", also known as a "front",  
13 means a third party who:

- 14           a. is put up in name only to take part in a transaction  
15               or otherwise is a nominal party to a transaction with  
16               no actual control,
- 17           b. acts on behalf of another person to obtain title to  
18               property and executes documents and instruments the  
19               principal may direct respecting property, or
- 20           c. purchases property for another for the purpose of  
21               concealing the identity of the real purchaser or to  
22               accomplish some purpose otherwise in violation of the  
23               Oklahoma Statutes;

1        47. "Surgical procedure" means a procedure that is performed  
2 for the purpose of structurally altering the human body by incision  
3 or destruction of tissues as part of the practice of medicine. This  
4 term includes the diagnostic or therapeutic treatment of conditions  
5 or disease processes by use of instruments such as lasers,  
6 ultrasound, ionizing, radiation, scalpels, probes, or needles that  
7 cause localized alteration or transportation of live human tissue by  
8 cutting, burning, vaporizing, freezing, suturing, probing, or  
9 manipulating by closed reduction for major dislocations or  
10 fractures, or otherwise altering by any mechanical, thermal, light-  
11 based, electromagnetic, or chemical means;

12        48. a. "Synthetic controlled substance" means a substance:

- 13            (1) the chemical structure of which is substantially  
14               similar to the chemical structure of a controlled  
15               dangerous substance in Schedule I or II,  
16            (2) which has a stimulant, depressant, or  
17               hallucinogenic effect on the central nervous  
18               system that is substantially similar to or  
19               greater than the stimulant, depressant, or  
20               hallucinogenic effect on the central nervous  
21               system of a controlled dangerous substance in  
22               Schedule I or II, or  
23            (3) with respect to a particular person, which such  
24               person represents or intends to have a stimulant,

1                   depressant, or hallucinogenic effect on the  
2                   central nervous system that is substantially  
3                   similar to or greater than the stimulant,  
4                   depressant, or hallucinogenic effect on the  
5                   central nervous system of a controlled dangerous  
6                   substance in Schedule I or II.

7           b.    The designation of gamma-butyrolactone or any other  
8                chemical as a precursor, pursuant to Section 2-322 of  
9                this title, does not preclude a finding pursuant to  
10              subparagraph a of this paragraph that the chemical is  
11              a synthetic controlled substance.

12          c.    Synthetic controlled substance does not include:

- 13               (1)   a controlled dangerous substance,  
14               (2)   any substance for which there is an approved new  
15               drug application,  
16               (3)   with respect to a particular person any  
17                    substance, if an exemption is in effect for  
18                    investigational use, for that person under the  
19                    provisions of Section 505 of the Federal Food,  
20                    Drug, and Cosmetic Act, 21 U.S.C., Section 355,  
21                    to the extent conduct with respect to such  
22                    substance is pursuant to such exemption, or  
23  
24



(4) any substance to the extent not intended for human consumption before such an exemption takes effect with respect to that substance.

d. Prima facie evidence that a substance containing salvia divinorum has been enhanced, concentrated, or chemically or physically altered shall give rise to a rebuttable presumption that the substance is a synthetic controlled substance;

49. "Tetrahydrocannabinols" ~~means~~ includes all substances that have been chemically synthesized to emulate the tetrahydrocannabinols of marijuana, specifically including any tetrahydrocannabinols derived from industrial hemp; and

50. "Ultimate user" means a person who lawfully possesses a controlled dangerous substance for the person's own use or for the use of a member of the person's household or for administration to an animal owned by the person or by a member of the person's household.

SECTION 2. AMENDATORY 63 O.S. 2021, Section 2-204, as last amended by Section 3, Chapter 308, O.S.L. 2024 (63 O.S. Supp. 2025, Section 2-204), is amended to read as follows:

Section 2-204. The controlled substances listed in this section are included in Schedule I and include any material, compound, mixture, or preparation that contains any quantity of the following hallucinogenic substances, their salts, isomers, and salts of

1 isomers, unless specifically excepted, when the existence of these  
2 salts, isomers, and salts of isomers is possible within the specific  
3 chemical designation.

4 A. Any of the following opiates including their isomers,  
5 esters, ethers, salts, and salts of isomers, esters, and ethers,  
6 unless specifically excepted, when the existence of these isomers,  
7 esters, ethers, and salts is possible within the specific chemical  
8 designation:

- 9 1. Acetylmethadol;
- 10 2. Allylprodine;
- 11 3. Alphacetylmethadol;
- 12 4. Alphameprodine;
- 13 5. Alphamethadol;
- 14 6. Benzethidine;
- 15 7. Betacetylmethadol;
- 16 8. Betameprodine;
- 17 9. Betamethadol;
- 18 10. Betaprodine;
- 19 11. Clonitazene;
- 20 12. Dextromoramide;
- 21 13. Dextrorphan (except its methyl ether);
- 22 14. Diampromide;
- 23 15. Diethylthiambutene;
- 24 16. Dimenoxadol;

- |    |                                  |
|----|----------------------------------|
| 1  | 17. Dimepheptanol;               |
| 2  | 18. Dimethylthiambutene;         |
| 3  | 19. Dioxaphetyl butyrate;        |
| 4  | 20. Dipipanone;                  |
| 5  | 21. Ethylmethylthiambutene;      |
| 6  | 22. Etonitazene;                 |
| 7  | 23. Etoxeridine;                 |
| 8  | 24. Furethidine;                 |
| 9  | 25. Hydroxypethidine;            |
| 10 | 26. Isotonitazene;               |
| 11 | 27. Ketobemidone;                |
| 12 | 28. Levomoramide;                |
| 13 | 29. Levophenacylmorphan;         |
| 14 | 30. Metonitazene;                |
| 15 | 31. Morpheridine;                |
| 16 | 32. N-desethyl isotonitazene;    |
| 17 | 33. N-pyrrolidino protonitazene; |
| 18 | 34. Noracymethadol;              |
| 19 | 35. Norlevorphanol;              |
| 20 | 36. Normethadone;                |
| 21 | 37. Norpipanone;                 |
| 22 | 38. Phenadoxone;                 |
| 23 | 39. Phenampromide;               |
| 24 | 40. Phenomorphan;                |

41. Phenoperidine;

42. Piritramide;

43. Proheptazine;

44. Properidine;

45. Protonitazene;

46. Racemoramide; or

47. Trimeperidine.

B. Any of the following opium derivatives, their salts, isomers, and salts of isomers, unless specifically excepted, when the existence of these salts, isomers, and salts of isomers is possible within the specific chemical designation:

1. Acetorphine;

2. Acetyldihydrocodeine;

3. Benzylmorphine;

4. Codeine methylbromide;

5. Codeine-N-Oxide;

6. Cyprenorphine;

7. Desomorphine;

8. Dihydromorphine;

9. Etorphine;

10. Heroin;

11. Hydromorphenol;

12. Methyldesorphine;

13. Methylhydromorphine;

- 1 14. Morphine methylbromide;
- 2 15. Morphine methylsulfonate;
- 3 16. Morphine-N-Oxide;
- 4 17. Myrophine;
- 5 18. Nicocodeine;
- 6 19. Nicomorphine;
- 7 20. Normorphine;
- 8 21. Phoclodine;
- 9 22. Thebacon;
- 10 23. N-phenyl-N-[1-(2-phenylethyl)-4-piperidinyl]-acetamide
- 11 (Acetyl fentanyl);
- 12 24. N-phenyl-N-[1-(2-phenylethyl)-4-piperidinyl]-butenamide
- 13 (Crotonyl fentanyl);
- 14 25. N-phenyl-N-[1-(2-phenylethyl)-4-piperidinyl]-2-
- 15 furancarboxamide (Furanyl fentanyl);
- 16 26. N-phenyl-1-(2-phenylethyl)-4-piperidinamine (4-ANPP);
- 17 27. N-(1-phenethylpiperidin-4-yl)-N-
- 18 phenylcyclopropanecarboxamide (Cyclopropyl fentanyl); or
- 19 28. N-phenyl-N-[1-(2-phenylethyl)-4-piperidinyl]-butanamide
- 20 (Butyrl fentanyl).

21 C. Any material, compound, mixture, or preparation which  
22 contains any quantity of the following hallucinogenic substances,  
23 their salts, isomers, and salts of isomers, unless specifically  
24

excepted, when the existence of these salts, isomers, and salts of isomers is possible within the specific chemical designation:

1. Methcathinone;
2. 3, 4-methylenedioxy amphetamine;
3. 3, 4-methylenedioxy methamphetamine;
4. 5-methoxy-3, 4-methylenedioxy amphetamine;
5. 3, 4, 5-trimethoxy amphetamine;
6. Bufotenine;
7. Diethyltryptamine;
8. Dimethyltryptamine;
9. 4-methyl-2, 5-dimethoxyamphetamine;
10. Ibogaine;
11. Lysergic acid diethylamide;
12. Marijuana;
13. Mescaline;
14. N-benzylpiperazine;
15. N-ethyl-3-piperidyl benzilate;
16. N-methyl-3-piperidyl benzilate;
17. Psilocybin;
18. Psilocyn;
19. 2, 5 dimethoxyamphetamine;
20. 4 Bromo-2, 5-dimethoxyamphetamine;
21. 4 methoxyamphetamine;
22. Cyclohexamine;

- 1 23. Salvia Divinorum;
- 2 24. Salvinorin A;
- 3 25. Thiophene Analog of Phencyclidine. Also known as: 1-(1-(2-
- 4 thienyl) cyclohexyl) piperidine; 2-Thienyl Analog of Phencyclidine;
- 5 TPCP, TCP;
- 6 26. Phencyclidine (PCP);
- 7 27. Pyrrolidine Analog for Phencyclidine. Also known as 1-(1-
- 8 Phenylcyclohexyl) - Pyrrolidine, PCPy, PHP;
- 9 28. 1-(3-trifluoromethylphenyl) piperazine;
- 10 29. Flunitrazepam;
- 11 30. B-hydroxy-amphetamine;
- 12 31. B-ketoamphetamine;
- 13 32. 2,5-dimethoxy-4-nitroamphetamine;
- 14 33. 2,5-dimethoxy-4-bromophenethylamine;
- 15 34. 2,5-dimethoxy-4-chlorophenethylamine;
- 16 35. 2,5-dimethoxy-4-iodoamphetamine;
- 17 36. 2,5-dimethoxy-4-iodophenethylamine;
- 18 37. 2,5-dimethoxy-4-methylphenethylamine;
- 19 38. 2,5-dimethoxy-4-ethylphenethylamine;
- 20 39. 2,5-dimethoxy-4-fluorophenethylamine;
- 21 40. 2,5-dimethoxy-4-nitrophenethylamine;
- 22 41. 2,5-dimethoxy-4-ethylthio-phenethylamine;
- 23 42. 2,5-dimethoxy-4-isopropylthio-phenethylamine;
- 24 43. 2,5-dimethoxy-4-propylthio-phenethylamine;

- 1 44. 2,5-dimethoxy-4-cyclopropylmethylthio-phenethylamine;
- 2 45. 2,5-dimethoxy-4-tert-butylthio-phenethylamine;
- 3 46. 2,5-dimethoxy-4-(2-fluoroethylthio)-phenethylamine;
- 4 47. 5-methoxy-N, N-dimethyltryptamine;
- 5 48. N-methyltryptamine;
- 6 49. A-ethyltryptamine;
- 7 50. A-methyltryptamine;
- 8 51. N, N-diethyltryptamine;
- 9 52. N, N-diisopropyltryptamine;
- 10 53. N, N-dipropyltryptamine;
- 11 54. 5-methoxy-a-methyltryptamine;
- 12 55. 4-hydroxy-N, N-diethyltryptamine;
- 13 56. 4-hydroxy-N, N-diisopropyltryptamine;
- 14 57. 5-methoxy-N, N-diisopropyltryptamine;
- 15 58. 4-hydroxy-N-isopropyl-N-methyltryptamine;
- 16 59. 3,4-Methylenedioxymethcathinone (Methylone);
- 17 60. 3,4-Methylenedioxypyrovalerone (MDPV);
- 18 61. 3-Methylmethcathinone (Metaphedrone);
- 19 62. 4-Methylmethcathinone (Mephedrone);
- 20 63. 4-methoxymethcathinone;
- 21 64. 4-Fluoromethcathinone;
- 22 65. 3-Fluoromethcathinone;
- 23 66. 1-(8-bromobenzo 1,2-b;4,5-b' difuran-4-yl)-2-aminopropane;
- 24 67. 2,5-Dimethoxy-4-chloroamphetamine;



1 68. 4-Methylethcathinone;  
2 69. Pyrovalerone;  
3 70. N,N-diallyl-5-methoxytryptamine;  
4 71. 3,4-Methylenedioxy-N-ethylcathinone (Ethylone);  
5 72. B-keto-N-Methylbenzodioxolylbutanamine (Butylone);  
6 73. B-keto-Methylbenzodioxolylpentanamine (Pentylone);  
7 74. Alpha-Pyrrolidinopentiophenone;  
8 75. 4-Fluoroamphetamine;  
9 76. Pentedrone;  
10 77. 4'-Methyl-a-pyrrolidinohexaphenone;  
11 78. 2,5-dimethoxy-4-(n)-propylphenethylamine;  
12 79. 2,5-dimethoxyphenethylamine;  
13 80. 1,4-Dibenzylpiperazine;  
14 81. N,N-Dimethylamphetamine;  
15 82. 4-Fluoromethamphetamine;  
16 83. 4-Chloro-2,5-dimethoxy-N-(2-methoxybenzyl)phenethylamine  
17 (25C-NBOMe) ;  
18 84. 4-Iodo-2,5-dimethoxy-N-(2-methoxybenzyl)phenethylamine  
19 (25I-NBOMe) ;  
20 85. 4-Bromo-2,5-dimethoxy-N-(2-methoxybenzy)phenethylamine  
21 (25B-NBOMe) ;  
22 86. 1-(4-Fluorophenyl)piperazine;  
23 87. Methoxetamine;  
24

- 1        88.   3,4-dichloro-N[2-dimethylamino)cyclohexyl]-N-  
2 methylbenzamide;  
3        89.   N-ethyl hexadrone;  
4        90.   Isopropyl-U-47700;  
5        91.   Para-fluorobutyl fentanyl;  
6        92.   Para-fluorofentanyl (pFF);  
7        93.   Fluoro isobutryl fentanyl;  
8        94.   3-Hydroxy Phencyclidine (PCP);  
9        95.   3-methoxy Phencyclidine (PCP);  
10       96.   Flualprazolam; ~~or~~  
11       97.   Flubromazolam; or  
12       98.   Tetrahydrocannabinols.

13       D.   Unless specifically excepted or unless listed in a different  
14 schedule, any material, compound, mixture, or preparation which  
15 contains any quantity of the following substances having stimulant  
16 or depressant effect on the central nervous system:

- 17       1.   Fenethylline;  
18       2.   Mecloqualone;  
19       3.   N-ethylamphetamine;  
20       4.   Methaqualone;  
21       5.   Gamma-Hydroxybutyric Acid, also known as GHB, gamma-  
22 hydroxybutyrate, 4-hydroxybutyrate, 4-hydroxybutanoic acid, sodium  
23 oxybate, and sodium oxybutyrate;  
24

1        6.    Gamma-Butyrolactone (GBL) as packaged, marketed,  
2 manufactured, or promoted for human consumption, with the exception  
3 of legitimate food additive and manufacturing purposes;

4        7.    Gamma Hydroxyvalerate (GHV) as packaged, marketed, or  
5 manufactured for human consumption, with the exception of legitimate  
6 food additive and manufacturing purposes;

7        8.    Gamma Valerolactone (GVL) as packaged, marketed, or  
8 manufactured for human consumption, with the exception of legitimate  
9 food additive and manufacturing purposes;

10       9.    1,4 Butanediol (1,4 BD or BDO) as packaged, marketed,  
11 manufactured, or promoted for human consumption with the exception  
12 of legitimate manufacturing purposes; or

13       10.   N-ethylpentylone.

14       E.    1.    The following industrial uses of Gamma-Butyrolactone,  
15 Gamma Hydroxyvalerate, Gamma Valerolactone, or 1,4 Butanediol are  
16 excluded from all schedules of controlled substances under this  
17 title:

- 18           a.    pesticides,
- 19           b.    photochemical etching,
- 20           c.    electrolytes of small batteries or capacitors,
- 21           d.    viscosity modifiers in polyurethane,
- 22           e.    surface etching of metal coated plastics,
- 23           f.    organic paint disbursements for water soluble inks,

- g. pH regulators in the dyeing of wool and polyamide fibers,
- h. foundry chemistry as a catalyst during curing,
- i. curing agents in many coating systems based on urethanes and amides,
- j. additives and flavoring agents in food, confectionary, and beverage products,
- k. synthetic fiber and clothing production,
- l. tetrahydrofuran production,
- m. gamma butyrolactone production,
- n. polybutylene terephthalate resin production,
- o. polyester raw materials for polyurethane elastomers and foams,
- p. coating resin raw material, and
- q. as an intermediate in the manufacture of other chemicals and pharmaceuticals.

2. At the request of any person, the Director of the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control may exempt any other product containing Gamma-Butyrolactone, Gamma Hydroxyvalerate, Gamma Valerolactone, or 1,4 Butanediol from being included as a Schedule I controlled substance if such product is labeled, marketed, manufactured, and distributed for legitimate industrial use in a manner that reduces or eliminates the likelihood of abuse.

1        3. In making a determination regarding an industrial product,  
2 the Director, after notice and hearing, shall consider the  
3 following:

- 4            a. the history and current pattern of abuse,
- 5            b. the name and labeling of the product,
- 6            c. the intended manner of distribution, advertising, and  
7                promotion of the product, and
- 8            d. other factors as may be relevant to and consistent  
9                with the public health and safety.

10        4. The hearing shall be held in accordance with the procedures  
11 of the Administrative Procedures Act.

12        F. Any material, compound, mixture, or preparation, whether  
13 produced directly or indirectly from a substance of vegetable origin  
14 or independently by means of chemical synthesis, or by a combination  
15 of extraction and chemical synthesis, that contains any quantity of  
16 the following substances, or that contains any of their salts,  
17 isomers, and salts of isomers when the existence of these salts,  
18 isomers, and salts of isomers is possible within the specific  
19 chemical designation:

- 20            1. JWH-004;
- 21            2. JWH-007;
- 22            3. JWH-009;
- 23            4. JWH-015;
- 24            5. JWH-016;

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| 1  | 6. JWH-018;  |
| 2  | 7. JWH-019;  |
| 3  | 8. JWH-020;  |
| 4  | 9. JWH-030;  |
| 5  | 10. JWH-046; |
| 6  | 11. JWH-047; |
| 7  | 12. JWH-048; |
| 8  | 13. JWH-049; |
| 9  | 14. JWH-050; |
| 10 | 15. JWH-070; |
| 11 | 16. JWH-071; |
| 12 | 17. JWH-072; |
| 13 | 18. JWH-073; |
| 14 | 19. JWH-076; |
| 15 | 20. JWH-079; |
| 16 | 21. JWH-080; |
| 17 | 22. JWH-081; |
| 18 | 23. JWH-082; |
| 19 | 24. JWH-094; |
| 20 | 25. JWH-096; |
| 21 | 26. JWH-098; |
| 22 | 27. JWH-116; |
| 23 | 28. JWH-120; |
| 24 | 29. JWH-122; |

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| 1  | 30. | JWH-145; |
| 2  | 31. | JWH-146; |
| 3  | 32. | JWH-147; |
| 4  | 33. | JWH-148; |
| 5  | 34. | JWH-149; |
| 6  | 35. | JWH-150; |
| 7  | 36. | JWH-156; |
| 8  | 37. | JWH-167; |
| 9  | 38. | JWH-175; |
| 10 | 39. | JWH-180; |
| 11 | 40. | JWH-181; |
| 12 | 41. | JWH-182; |
| 13 | 42. | JWH-184; |
| 14 | 43. | JWH-185; |
| 15 | 44. | JWH-189; |
| 16 | 45. | JWH-192; |
| 17 | 46. | JWH-193; |
| 18 | 47. | JWH-194; |
| 19 | 48. | JWH-195; |
| 20 | 49. | JWH-196; |
| 21 | 50. | JWH-197; |
| 22 | 51. | JWH-198; |
| 23 | 52. | JWH-199; |
| 24 | 53. | JWH-200; |

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| 1  | 54. | JWH-201; |
| 2  | 55. | JWH-202; |
| 3  | 56. | JWH-203; |
| 4  | 57. | JWH-204; |
| 5  | 58. | JWH-205; |
| 6  | 59. | JWH-206; |
| 7  | 60. | JWH-207; |
| 8  | 61. | JWH-208; |
| 9  | 62. | JWH-209; |
| 10 | 63. | JWH-210; |
| 11 | 64. | JWH-211; |
| 12 | 65. | JWH-212; |
| 13 | 66. | JWH-213; |
| 14 | 67. | JWH-234; |
| 15 | 68. | JWH-235; |
| 16 | 69. | JWH-236; |
| 17 | 70. | JWH-237; |
| 18 | 71. | JWH-239; |
| 19 | 72. | JWH-240; |
| 20 | 73. | JWH-241; |
| 21 | 74. | JWH-242; |
| 22 | 75. | JWH-243; |
| 23 | 76. | JWH-244; |
| 24 | 77. | JWH-245; |



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| 1  | 78.  | JWH-246; |
| 2  | 79.  | JWH-248; |
| 3  | 80.  | JWH-249; |
| 4  | 81.  | JWH-250; |
| 5  | 82.  | JWH-251; |
| 6  | 83.  | JWH-252; |
| 7  | 84.  | JWH-253; |
| 8  | 85.  | JWH-262; |
| 9  | 86.  | JWH-292; |
| 10 | 87.  | JWH-293; |
| 11 | 88.  | JWH-302; |
| 12 | 89.  | JWH-303; |
| 13 | 90.  | JWH-304; |
| 14 | 91.  | JWH-305; |
| 15 | 92.  | JWH-306; |
| 16 | 93.  | JWH-307; |
| 17 | 94.  | JWH-308; |
| 18 | 95.  | JWH-311; |
| 19 | 96.  | JWH-312; |
| 20 | 97.  | JWH-313; |
| 21 | 98.  | JWH-314; |
| 22 | 99.  | JWH-315; |
| 23 | 100. | JWH-316; |
| 24 | 101. | JWH-346; |

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| 1  | 102. | JWH-348;    |
| 2  | 103. | JWH-363;    |
| 3  | 104. | JWH-364;    |
| 4  | 105. | JWH-365;    |
| 5  | 106. | JWH-367;    |
| 6  | 107. | JWH-368;    |
| 7  | 108. | JWH-369;    |
| 8  | 109. | JWH-370;    |
| 9  | 110. | JWH-371;    |
| 10 | 111. | JWH-373;    |
| 11 | 112. | JWH-386;    |
| 12 | 113. | JWH-387;    |
| 13 | 114. | JWH-392;    |
| 14 | 115. | JWH-394;    |
| 15 | 116. | JWH-395;    |
| 16 | 117. | JWH-397;    |
| 17 | 118. | JWH-398;    |
| 18 | 119. | JWH-399;    |
| 19 | 120. | JWH-400;    |
| 20 | 121. | JWH-412;    |
| 21 | 122. | JWH-413;    |
| 22 | 123. | JWH-414;    |
| 23 | 124. | JWH-415;    |
| 24 | 125. | CP-55, 940; |

- 1 126. CP-47, 497;
- 2 127. HU-210;
- 3 128. HU-211;
- 4 129. WIN-55, 212-2;
- 5 130. AM-2201;
- 6 131. AM-2233;
- 7 132. JWH-018 adamantyl-carboxamide;
- 8 133. AKB48;
- 9 134. JWH-122 N-(4-pentenyl) analog;
- 10 135. MAM2201;
- 11 136. URB597;
- 12 137. URB602;
- 13 138. URB754;
- 14 139. UR144;
- 15 140. XLR11;
- 16 141. A-796,260;
- 17 142. STS-135;
- 18 143. AB-FUBINACA;
- 19 144. AB-PINACA;
- 20 145. PB-22;
- 21 146. AKB48 N-5-Fluoropentyl;
- 22 147. AM1248;
- 23 148. FUB-PB-22;
- 24 149. ADB-FUBINACA;

150. BB-22;

151. 5-Fluoro PB-22; or

152. 5-Fluoro AKB-48.

G. In addition to those substances listed in subsection F of this section, unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of a synthetic cannabinoid found to be in any of the following chemical groups:

1. Naphthoylindoles: any compound containing a 3-(1-naphthoyl)indole structure with or without substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted on the indole ring to any extent, and whether or not substituted on the naphthyl ring to any extent. Naphthoylindoles include, but are not limited to:

- a. 1-[2-(4-morpholinyl)ethyl]-3-(1-naphthoyl)indole (JWH-200),
- b. 1-(5-fluoropentyl)-3-(1-naphthoyl)indole (AM2201),
- c. 1-pentyl-3-(1-naphthoyl)indole (JWH-018),
- d. 1-butyl-3-(1-naphthoyl)indole (JWH-073),

- e. 1-pentyl-3-(4-methoxy-1-naphthoyl)indole (JWH-081),  
f. 1-propyl-2-methyl-3-(1-naphthoyl)indole (JWH-015),  
g. 1-hexyl-3-(1-naphthoyl)indole (JWH-019),  
h. 1-pentyl-3-(4-methyl-1-naphthoyl)indole (JWH-122),  
i. 1-pentyl-3-(4-ethyl-1-naphthoyl)indole (JWH-210),  
j. 1-pentyl-3-(4-chloro-1-naphthoyl)indole (JWH-398),  
k. 1-pentyl-2-methyl-3-(1-naphthoyl)indole (JWH-007),  
l. 1-pentyl-3-(7-methoxy-1-naphthoyl)indole (JWH-164),  
m. 1-pentyl-2-methyl-3-(4-methoxy-1-naphthoyl)indole  
(JWH-098),  
n. 1-pentyl-3-(4-fluoro-1-naphthoyl)indole (JWH-412),  
o. 1-[1-(N-methyl-2-piperidinyl)methyl]-3-(1-  
naphthoyl)indole (AM-1220),  
p. 1-(5-fluoropentyl)-3-(4-methyl-1-naphthoyl)indole  
(MAM-2201), or  
q. 1-(4-cyanobutyl)-3-(1-naphthoyl)indole (AM-2232);

2. Naphthylmethylindeles: any compound containing a 1H-indol-  
3-yl-(1-naphthyl)methane structure with or without substitution at  
the nitrogen atom of the indole ring by an alkyl, haloalkyl,  
cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl,  
halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-  
morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-  
morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl,  
phenyl, or halophenyl group, whether or not further substituted on

the indole ring to any extent, and whether or not substituted on the naphthyl ring to any extent. Naphthylmethylindeles include, but are not limited to, (1-pentylindol-3-yl)(1-naphthyl)methane (JWH-175);

3. Naphthoylpyrroles: any compound containing a 3-(1-naphthoyl)pyrrole structure with or without substitution at the nitrogen atom of the pyrrole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted on the pyrrole ring to any extent, and whether or not substituted on the naphthyl group to any extent. Naphthoylpyrroles include, but are not limited to:

- a. 1-hexyl-2-phenyl-4-(1-naphthoyl)pyrrole (JWH-147),
- b. 1-pentyl-5-(2-methylphenyl)-3-(1-naphthoyl)pyrrole (JWH-370),
- c. 1-pentyl-3-(1-naphthoyl)pyrrole (JWH-030), or
- d. 1-hexyl-5-phenyl-3-(1-naphthoyl)pyrrole (JWH-147);

4. Naphthylideneindenes: any compound containing a 1-(1-naphthylmethylene)indene structure with or without substitution at the 3-position of the indene ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-

morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted on the indene group to any extent, and whether or not substituted on the naphthyl group to any extent. Naphthylmethylindenes include, but are not limited to, (1-[(3-pentyl)-1H-inden-1-ylidene)methyl]naphthalene (JWH-176);

5. Phenylacetylindoles: any compound containing a 3-phenylacetylindole structure with or without substitution at the nitrogen atom of the indole ring by alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted on the indole ring to any extent, and whether or not substituted on the phenyl ring to any extent. Phenylacetylindoles include, but are not limited to:

- a. 1-pentyl-3-(2-methoxyphenylacetyl)indole (JWH-250),
- b. 1-(2-cyclohexylethyl)-3-(2-methoxyphenylacetyl)indole (RCS-8),
- c. 1-pentyl-3-(2-chlorophenylacetyl)indole (JWH-203),
- d. 1-pentyl-3-(2-methylphenylacetyl)indole (JWH-251),
- e. 1-pentyl-3-(4-methoxyphenylacetyl)indole (JWH-201), or

1 f. 1-pentyl-3-(3-methoxyphenylacetyl)indole (JWH-302);

2 6. Cyclohexylphenols: any compound containing a 2-(3-  
3 hydroxycyclohexyl)phenol structure with or without substitution at  
4 the 5-position of the phenolic ring by an alkyl, haloalkyl,  
5 cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl,  
6 halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-  
7 morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-  
8 morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl,  
9 phenyl, or halophenyl group, and whether or not further substituted  
10 on the cyclohexyl ring to any extent. Cyclohexylphenols include,  
11 but are not limited to:

12 a. 5-(1,1-dimethylheptyl)-2-[(1R,3S)-3-  
13 hydroxycyclohexyl]-phenol (CP-47,497),

14 b. 5-(1,1-dimethyloctyl)-2-[(1R,3S)-3-hydroxycyclohexyl]-  
15 phenol (cannabicyclohexanol; CP-47,497 C8 homologue),  
16 or

17 c. 5-(1,1-dimethylheptyl)-2-[(1R,2R)-5-hydroxy-2-(3-  
18 hydroxypropyl)cyclohexyl]-phenol (CP 55, 940);

19 7. Benzoylindoles: any compound containing a 3-(benzoyl)indole  
20 structure with or without substitution at the nitrogen atom of the  
21 indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl,  
22 cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-  
23 2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-  
24 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl,



(tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted on the indole ring to any extent, and whether or not substituted on the phenyl group to any extent. Benzoylindoles include, but are not limited to:

- a. 1-pentyl-3-(4-methoxybenzoyl)indole (RCS-4),
- b. 1-[2-(4-morpholinyl)ethyl]-2-methyl-3-(4-methoxybenzoyl)indole (Pravadoline or WIN 48, 098),
- c. 1-(5-fluoropentyl)-3-(2-iodobenzoyl)indole (AM-694),
- d. 1-pentyl-3-(2-iodobenzoyl)indole (AM-679), or
- e. 1-[1-(N-methyl-2-piperidinyl)methyl]-3-(2-iodobenzoyl)indole (AM-2233);

8. Cyclopropoylindoles: Any compound containing a 3-(cyclopropoyl)indole structure with substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted in the indole ring to any extent, and whether or not substituted in the cyclopropoyl ring to any extent. Cyclopropoylindoles include, but are not limited to:

- 1           a.    1-pentyl-3-(2,2,3,3-tetramethylcyclopropoyl)indole  
2                    (UR-144),  
3           b.    1-(5-chloropentyl)-3-(2,2,3,3-  
4                    tetramethylcyclopropoyl)indole (5Cl-UR-144), or  
5           c.    1-(5-fluoropentyl)-3-(2,2,3,3-  
6                    tetramethylcyclopropoyl)indole (XLR11);

7        9.   Indole Amides: Any compound containing a 1H-Indole-3-  
8 carboxamide structure with or without substitution at the nitrogen  
9 atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl,  
10 cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-  
11 2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-  
12 pyrrolidinyl)methyl, 1-(N-methyl-3- morpholinyl)methyl,  
13 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or  
14 halophenyl group, whether or not substituted at the carboxamide  
15 group by an adamantyl, naphthyl, phenyl, benzyl, quinolinyl,  
16 cycloalkyl, 1-amino-3-methyl-1-oxobutan-2-yl, 1-amino-3,3-dimethyl-  
17 1-oxobutan-2-yl, 1-methoxy-3-methyl-1-oxobutan-2-yl, 1-methoxy-3,3-  
18 dimethyl-1-oxobutan-2-yl or pyrrole group, and whether or not  
19 further substituted in the indole, adamantyl, naphthyl, phenyl,  
20 pyrrole, quinolinyl, or cycloalkyl rings to any extent. Indole  
21 Amides include, but are not limited to:

- 22           a.    N-(1-adamantyl)-1-pentyl-1H-indole-3-carboxamide  
23                    (2NE1),  
24

- b. N-(1-adamantyl)-1-(5-fluoropentyl)-1H-indole-3-carboxamide (STS-135),
- c. N-(1-amino-3,3-dimethyl-1-oxobutan-2-yl)-1-pentyl-1H-indole-3-carboxamide (ADBICA),
- d. N-(1-amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(5-fluoropentyl)-1H-indole-3-carboxamide (5F-ADBICA),
- e. N-(naphthalen-1-yl)-1-pentyl-1H-indole-3-carboxamide (NNE1),
- f. 1-(5-fluoropentyl)-N-(naphthalene-1-yl)-1H-indole-3-carboxamide (5F-NNE1),
- g. N-benzyl-1-pentyl-1H-indole-3-carboxamide (SDB-006),  
or
- h. N-benzyl-1-(5-fluoropentyl)-1H-indole-3-carboxamide (5F-SDB-006);

10. Indole Esters: Any compound containing a 1H-Indole-3-carboxylate structure with or without substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not substituted at the carboxylate group by an adamantyl, naphthyl, phenyl, benzyl, quinolinyl, cycloalkyl, 1-amino-3-methyl-1-oxobutan-2-yl, 1-amino-3,3-dimethyl-

1 1-oxobutan-2-yl, 1-methoxy-3-methyl-1-oxobutan-2-yl, 1-methoxy-3,3-  
2 dimethyl-1-oxobutan-2-yl or pyrrole group, and whether or not  
3 further substituted in the indole, adamantyl, naphthyl, phenyl,  
4 pyrrole, quinolinyl, or cycloalkyl rings to any extent. Indole  
5 Esters include, but are not limited to:

- 6 a. quinolin-8-yl 1-pentyl-1H-indole-3-carboxylate (PB-  
7 22),
- 8 b. quinolin-8-yl 1-(5-fluoropentyl)-1H-indole-3-  
9 carboxylate (5F-PB-22),
- 10 c. quinolin-8-yl 1-(cyclohexylmethyl)-1H-indole-3-  
11 carboxylate (BB-22),
- 12 d. naphthalen-1-yl 1-(4-fluorobenzyl)-1H-indole-3-  
13 carboxylate (FDU-PB-22), or
- 14 e. naphthalen-1-yl 1-(5-fluoropentyl)-1H-indole-3-  
15 carboxylate (NM2201);

16 11. Adamantanoylindoles: Any compound containing an  
17 adamantanyl-(1H-indol-3-yl)methanone structure with or without  
18 substitution at the nitrogen atom of the indole ring by an alkyl,  
19 haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl,  
20 benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-  
21 morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-  
22 morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl,  
23 phenyl, or halophenyl group, whether or not further substituted in  
24 the indole ring to any extent, and whether or not substituted in the

adamantyl ring to any extent. Adamantanoylindoles include, but are not limited to:

- a. adamantan-1-yl[1-[(1-methyl-2-piperidinyl)methyl]-1H-indol-3-yl]methanone (AM1248), or
- b. adamantan-1-yl-(1-pentyl-1H-indol-3-yl)methanone (AB-001);

12. Carbazole Ketone: Any compound containing (9H-carbazole-3-yl) methanone structure with or without substitution at the nitrogen atom of the carbazole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, with substitution at the carbon of the methanone group by an adamantyl, naphthyl, phenyl, benzyl, quinolinyl, cycloalkyl, 1-amino-3-methyl-1-oxobutan-2-yl, 1-amino-3,3-dimethyl-1-oxobutan-2-yl, 1-methoxy-3-methyl-1-oxobutan-2-yl, 1-methoxy-3,3-dimethyl-1-oxobutan-2-yl or pyrrole group, and whether or not further substituted at the carbazole, adamantyl, naphthyl, phenyl, pyrrole, quinolinyl, or cycloalkyl rings to any extent. Carbazole Ketones include, but are not limited to, naphthalen-1-yl(9-pentyl-9H-carbazol-3-yl)methanone (EG-018);

13. Benzimidazole Ketone: Any compound containing (benzimidazole-2-yl) methanone structure with or without

substitution at either nitrogen atom of the benzimidazole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, with substitution at the carbon of the methanone group by an adamantyl, naphthyl, phenyl, benzyl, quinolinyl, cycloalkyl, 1-amino-3-methyl-1-oxobutan-2-yl, 1-amino-3,3-dimethyl-1-oxobutan-2-yl, 1-methoxy-3-methyl-1-oxobutan-2-yl, 1-methoxy-3,3-dimethyl-1-oxobutan-2-yl or pyrrole group, and whether or not further substituted in the benzimidazole, adamantyl, naphthyl, phenyl, pyrrole, quinolinyl, or cycloalkyl rings to any extent.

Benzimidazole Ketones include, but are not limited to:

- a. naphthalen-1-yl(1-pentyl-1H-benzo[d]imidazol-2-yl)methanone (JWH-018 benzimidazole analog), or
- b. (1-(5-fluoropentyl)-1H-benzo[d]imidazol-2-yl)(naphthalen-1-yl)methanone (FUBIMINA); and

14. Modified by Replacement: any compound defined in this subsection that is modified by replacement of a carbon with nitrogen in the indole, naphthyl, indene, benzimidazole, or carbazole ring.

H. Any prescription drug approved by the federal Food and Drug Administration under the provisions of Section 505 of the Federal Food, Drug, and Cosmetic Act, Title 21 of the United States Code,

1 Section 355, that is designated, rescheduled, or deleted as a  
2 controlled substance under federal law by the United States Drug  
3 Enforcement Administration shall be excluded from Schedule I and  
4 shall be prescribed, distributed, dispensed, or used in accordance  
5 with federal law upon the issuance of a notice, final rule, or  
6 interim final rule by the United States Drug Enforcement  
7 Administration designating, rescheduling, or deleting as a  
8 controlled substance such a drug product under federal law, unless  
9 and until the State Board of Pharmacy takes action pursuant to  
10 Section 2-201 of this title. If the Board of Pharmacy does not take  
11 action pursuant to Section 2-201 of this title, the drug product  
12 shall be deemed to be designated, rescheduled, or deleted as a  
13 controlled substance in accordance with federal law and in  
14 compliance with the Uniform Controlled Dangerous Substances Act.

15 SECTION 3. AMENDATORY 63 O.S. 2021, Section 2-208, is  
16 amended to read as follows:

17 Section 2-208. The controlled substances listed in this section  
18 are included in Schedule III.

19 A. Unless listed in another schedule, any material, compound,  
20 mixture, or preparation, which contains any quantity of the  
21 following substances or any other substance having a potential for  
22 abuse associated with a stimulant or depressant effect on the  
23 central nervous system:

24

1        1. Any drug product containing gamma-hydroxybutyric acid,  
2 including its salts, isomers, and salts of isomers, for which an  
3 application has been approved under Section 505 of the Federal Food,  
4 Drug, and Cosmetic Act;

5        2. Any material, compound, mixture, or preparation which  
6 contains any quantity of the following hormonal substances or  
7 steroids, including their salts, isomers, esters and salts of  
8 isomers and esters, when the existence of these salts, isomers,  
9 esters, and salts of isomers and esters is possible within the  
10 specific chemical designation:

- 11            a. Boldenone,
- 12            b. Chlorotestosterone,
- 13            c. Clostebol,
- 14            d. Dehydrochlormethyltestosterone,
- 15            e. Dihydrotestosterone,
- 16            f. Drostanolone,
- 17            g. Ethylestrenol,
- 18            h. Fluoxymesterone,
- 19            i. Formebolone,
- 20            j. Mesterolone,
- 21            k. Methandienone,
- 22            l. Methandranone,
- 23            m. Methandriol,
- 24            n. Methandrostenolone,



- o. Methenolone,
- p. Methyltestosterone, except as provided in subsection E of this section,
- q. Mibolerone,
- r. Nandrolone,
- s. Norethandrolone,
- t. Oxandrolone,
- u. Oxymesterone,
- v. Oxymetholone,
- w. Stanolone,
- x. Stanozolol,
- y. Testolactone,
- z. Testosterone, except as provided in subsection E of this section, and
- aa. Trenbolone;

3. Any substance which contains any quantity of a derivative of barbituric acid, or any salt of a derivative of barbituric acid;

- 4. Benzphetamine and its salts;
- 5. Buprenorphine;
- 6. Butalbital/acetaminophen/caffeine;
- 7. Chlorhexadol;
- 8. Chlorphentermine and its salts;
- 9. Clortermine;
- 10. Dronabinol;

1        11.    Glutethimide;

2        ~~11.~~ 12.    Ketamine, its salts, isomers, and salts of isomers;

3        ~~12.~~ 13.    Lysergic acid;

4        ~~13.~~ 14.    Lysergic acid amide;

5        ~~14.~~ 15.    Mazindol;

6        ~~15.~~ 16.    Methyprylon;

7        ~~16.~~ 17.    Phendimetrazine;

8        ~~17.~~ 18.    Phenylacetone (P2P);

9        ~~18.~~ 19.    Sulfondiethylmethane;

10       ~~19.~~ 20.    Sulfonethylmethane;

11       ~~20.~~ 21.    Sulfonmethane;

12       ~~21. — Tetrahydrocannabinols;~~

13       22.    1-Phenycyclohexylamine; or

14       23.    1-Piperidinocyclohexanecarbo nitrile (PCC).

15       Livestock implants as regulated by the Federal Food and Drug  
16       Administration shall be exempt.

17       B.    Nalorphine.

18       C.    Unless listed in another schedule, any material, compound,  
19       mixture, or preparation containing limited quantities of any of the  
20       following narcotic drugs, or any salts thereof:

21       1.    Not more than one and eight-tenths (1.8) grams of codeine or  
22       any of its salts, per one hundred (100) milliliters or not more than  
23       ninety (90) milligrams per dosage unit, with an equal or greater  
24       quantity of an isoquinoline alkaloid of opium;

1        2. Not more than one and eight-tenths (1.8) grams of codeine or  
2 any of its salts, per one hundred (100) milliliters or not more than  
3 ninety (90) milligrams per dosage unit, with one or more active,  
4 nonnarcotic ingredients in recognized therapeutic amounts;

5        3. Not more than one and eight-tenths (1.8) grams of  
6 dihydrocodeine or any of its salts, per one hundred (100)  
7 milliliters or not more than ninety (90) milligrams per dosage unit,  
8 with one or more active, nonnarcotic ingredients in recognized  
9 therapeutic amounts;

10       4. Not more than three hundred (300) milligrams of  
11 ethylmorphine or any of its salts, per one hundred (100) milliliters  
12 or not more than fifteen (15) milligrams per dosage unit, with one  
13 or more ingredients in recognized therapeutic amounts;

14       5. Not more than five hundred (500) milligrams of opium per one  
15 hundred (100) milliliters or per one hundred (100) grams, or not  
16 more than twenty-five (25) milligrams per dosage unit, with one or  
17 more active, nonnarcotic ingredients in recognized therapeutic  
18 amounts; or

19       6. Not more than fifty (50) milligrams of morphine or any of  
20 its salts, per one hundred (100) milliliters or per one hundred  
21 (100) grams with one or more active, nonnarcotic ingredients in  
22 recognized therapeutic amounts.

23       D. The Board of Pharmacy may except by rule any compound,  
24 mixture, or preparation containing any stimulant or depressant

1 substance listed in subsections A and B of this section from the  
2 application of all or any part of the Uniform Controlled Dangerous  
3 Substances Act if the compound, mixture, or preparation contains one  
4 or more active medicinal ingredients not having a stimulant or  
5 depressant effect on the central nervous system, and if the  
6 admixtures are included therein in combinations, quantity,  
7 proportion, or concentration that vitiate the potential for abuse of  
8 the substances which have a stimulant or depressant effect on the  
9 central nervous system.

10 E. The following hormonal substances or steroids are exempt  
11 from classification as Schedule III controlled dangerous substances:

12 1. Estratest, containing 1.25 mg esterified estrogens and 2.5  
13 mg methyltestosterone;

14 2. Estratest HS, containing 0.625 mg esterified estrogens and  
15 1.25 mg methyltestosterone;

16 3. Premarin with Methyltestosterone, containing 1.25 mg  
17 conjugated estrogens and 10.0 mg methyltestosterone;

18 4. Premarin with Methyltestosterone, containing 0.625 mg  
19 conjugated estrogens and 5.0 mg methyltestosterone;

20 5. Testosterone Cypionate - Estrodiol Cypionate injection,  
21 containing 50 mg/ml Testosterone Cypionate; and

22 6. Testosterone Enanthate - Estradiol Valerate injection,  
23 containing 90 mg/ml Testosterone Enanthate and 4 mg/ml Estradiol  
24 Valerate.

SECTION 4. This act shall become effective November 1, 2026."

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House of  
Representatives

Passed the Senate the \_\_\_\_ day of \_\_\_\_\_, 2026.

---

Presiding Officer of the Senate

1 ENGROSSED SENATE  
2 BILL NO. 1257

By: Hamilton of the Senate

3 and

4 Turner of the House  
5

6 An Act relating to the Uniform Controlled Dangerous  
7 Substances Act; amending 63 O.S. 2021, Section 2-101,  
8 as last amended by Section 8, Chapter 343, O.S.L.  
9 2025 (63 O.S. Supp. 2025, Section 2-101), which  
10 relates to definitions; modifying terms; amending 63  
11 O.S. 2021, Section 2-204, as last amended by Section  
12 3, Chapter 308, O.S.L. 2024 (63 O.S. Supp. 2025,  
13 Section 2-204), which relates to Schedule I; adding  
14 substance; amending 63 O.S. 2021, Section 2-208,  
15 which relates to Schedule III; adding substance;  
16 removing substance; conforming statutory language;  
17 and providing an effective date.  
18  
19

20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 5. AMENDATORY 63 O.S. 2021, Section 2-101, as  
22 last amended by Section 8, Chapter 343, O.S.L. 2025 (63 O.S. Supp.  
23 2025, Section 2-101), is amended to read as follows:  
24

Section 2-101. As used in the Uniform Controlled Dangerous  
Substances Act:

1. "Acute pain" means pain, whether resulting from disease,  
accidental trauma, intentional trauma, or other cause that the  
practitioner reasonably expects to last only a short period of time.  
Acute pain does not include chronic pain, pain being treated as part

1 of cancer care, hospice or other end-of-life care, or pain being  
2 treated as part of palliative care;

3 2. "Administer" means the direct application of a controlled  
4 dangerous substance, whether by injection, inhalation, ingestion or  
5 any other means, to the body of a patient, animal or research  
6 subject by:

7 a. a practitioner (or, in the presence of the  
8 practitioner, by the authorized agent of the  
9 practitioner), or

10 b. the patient or research subject at the direction and  
11 in the presence of the practitioner;

12 3. "Agent" means a peace officer appointed by and who acts on  
13 behalf of the Director of the Oklahoma State Bureau of Narcotics and  
14 Dangerous Drugs Control or an authorized person who acts on behalf  
15 of or at the direction of a person who manufactures, distributes,  
16 dispenses, prescribes, administers or uses for scientific purposes  
17 controlled dangerous substances but does not include a common or  
18 contract carrier, public warehouser or employee thereof, or a person  
19 required to register under the Uniform Controlled Dangerous  
20 Substances Act;

21 4. "Anhydrous ammonia" means any substance that exhibits  
22 cryogenic evaporative behavior and tests positive for ammonia;

23 5. "Board" means the Advisory Board to the Director of the  
24 Oklahoma State Bureau of Narcotics and Dangerous Drugs Control;

1       6. "Bureau" means the Oklahoma State Bureau of Narcotics and  
2 Dangerous Drugs Control;

3       7. "Chronic pain" means pain that persists beyond the usual  
4 course of an acute disease or healing of an injury. Chronic pain  
5 may or may not be associated with an acute or chronic pathologic  
6 process that causes continuous or intermittent pain over months or  
7 years;

8       8. "Coca leaves" includes cocaine and any compound,  
9 manufacture, salt, derivative, mixture or preparation of coca  
10 leaves, except derivatives of coca leaves which do not contain  
11 cocaine or ecgonine;

12       9. "Commissioner" or "Director" means the Director of the  
13 Oklahoma State Bureau of Narcotics and Dangerous Drugs Control;

14       10. "Control" means to add, remove or change the placement of a  
15 drug, substance or immediate precursor under the Uniform Controlled  
16 Dangerous Substances Act;

17       11. "Controlled dangerous substance" means a drug, substance or  
18 immediate precursor in Schedules I through V of the Uniform  
19 Controlled Dangerous Substances Act or any drug, substance or  
20 immediate precursor listed either temporarily or permanently as a  
21 federally controlled substance. Any conflict between state and  
22 federal law with regard to the particular schedule in which a  
23 substance is listed shall be resolved in favor of state law;

24



1        12. "Counterfeit substance" means a controlled substance which,  
2 or the container or labeling of which without authorization, bears  
3 the trademark, trade name or other identifying marks, imprint,  
4 number or device or any likeness thereof of a manufacturer,  
5 distributor or dispenser other than the person who in fact  
6 manufactured, distributed or dispensed the substance;

7        13. "Deliver" or "delivery" means the actual, constructive or  
8 attempted transfer from one person to another of a controlled  
9 dangerous substance or drug paraphernalia, whether or not there is  
10 an agency relationship;

11       14. "Dispense" means to deliver a controlled dangerous  
12 substance to an ultimate user or human research subject by or  
13 pursuant to the lawful order of a practitioner, including the  
14 prescribing, administering, packaging, labeling or compounding  
15 necessary to prepare the substance for such distribution.  
16 "Dispenser" is a practitioner who delivers a controlled dangerous  
17 substance to an ultimate user or human research subject;

18       15. "Distribute" means to deliver other than by administering  
19 or dispensing a controlled dangerous substance;

20       16. "Distributor" means a commercial entity engaged in the  
21 distribution or reverse distribution of narcotics and dangerous  
22 drugs and who complies with all regulations promulgated by the  
23 federal Drug Enforcement Administration and the Oklahoma State  
24 Bureau of Narcotics and Dangerous Drugs Control;

1        17. "Drug" means articles:

- 2            a.    recognized in the official United States Pharmacopeia,  
3                    official Homeopathic Pharmacopoeia of the United  
4                    States, or official National Formulary, or any  
5                    supplement to any of them,  
6            b.    intended for use in the diagnosis, cure, mitigation,  
7                    treatment or prevention of disease in man or other  
8                    animals,  
9            c.    other than food, intended to affect the structure or  
10                  any function of the body of man or other animals, and  
11            d.    intended for use as a component of any article  
12                  specified in this paragraph;

13 provided, however, the term drug does not include devices or their  
14 components, parts or accessories;

15        18. "Drug paraphernalia" means all equipment, products, and  
16 materials of any kind which are used, intended for use, or fashioned  
17 specifically for use in planting, propagating, cultivating, growing,  
18 harvesting, manufacturing, compounding, converting, producing,  
19 processing, preparing, testing, analyzing, packaging, repackaging,  
20 storing, containing, concealing, injecting, ingesting, inhaling, or  
21 otherwise introducing into the human body, a controlled dangerous  
22 substance in violation of the Uniform Controlled Dangerous  
23 Substances Act including, but not limited to:

- a. kits used, intended for use, or fashioned specifically for use in planting, propagating, cultivating, growing, or harvesting of any species of plant which is a controlled dangerous substance or from which a controlled dangerous substance can be derived,
- b. kits used, intended for use, or fashioned specifically for use in manufacturing, compounding, converting, producing, processing, or preparing controlled dangerous substances,
- c. isomerization devices used, intended for use, or fashioned specifically for use in increasing the potency of any species of plant which is a controlled dangerous substance,
- d. testing equipment used, intended for use, or fashioned specifically for use in identifying or in analyzing the strength, effectiveness, or purity of controlled dangerous substances,
- e. scales and balances used, intended for use, or fashioned specifically for use in weighing or measuring controlled dangerous substances,
- f. diluents and adulterants, such as quinine hydrochloride, mannitol, mannite, dextrose, and lactose used, intended for use, or fashioned

- 1 specifically for use in cutting controlled dangerous  
2 substances,
- 3 g. separation gins and sifters used, intended for use, or  
4 fashioned specifically for use in removing twigs and  
5 seeds from, or in otherwise cleaning or refining,  
6 marijuana,
- 7 h. blenders, bowls, containers, spoons, and mixing  
8 devices used, intended for use, or fashioned  
9 specifically for use in compounding controlled  
10 dangerous substances,
- 11 i. capsules, balloons, envelopes, and other containers  
12 used, intended for use, or fashioned specifically for  
13 use in packaging small quantities of controlled  
14 dangerous substances,
- 15 j. containers and other objects used, intended for use,  
16 or fashioned specifically for use in parenterally  
17 injecting controlled dangerous substances into the  
18 human body,
- 19 k. hypodermic syringes, needles, and other objects used,  
20 intended for use, or fashioned specifically for use in  
21 parenterally injecting controlled dangerous substances  
22 into the human body, except as authorized by Section  
23 2-1101 of this title,  
24

1. objects used, intended for use, or fashioned specifically for use in ingesting, inhaling, or otherwise introducing marijuana, cocaine, hashish, or hashish oil into the human body, such as:
- (1) metal, wooden, acrylic, glass, stone, plastic, or ceramic pipes with or without screens, permanent screens, hashish heads, or punctured metal bowls,
  - (2) water pipes,
  - (3) carburetion tubes and devices,
  - (4) smoking and carburetion masks,
  - (5) roach clips, meaning objects used to hold burning material, such as a marijuana cigarette, that has become too small or too short to be held in the hand,
  - (6) miniature cocaine spoons and cocaine vials,
  - (7) chamber pipes,
  - (8) carburetor pipes,
  - (9) electric pipes,
  - (10) air-driven pipes,
  - (11) chillums,
  - (12) bongs, or
  - (13) ice pipes or chillers,
- m. all hidden or novelty pipes, and

1           n.    any pipe that has a tobacco bowl or chamber of less  
2                   than one-half (1/2) inch in diameter in which there is  
3                   any detectable residue of any controlled dangerous  
4                   substance as defined in this section or any other  
5                   substances not legal for possession or use;

6 provided, however, the term drug paraphernalia shall not include  
7 separation gins intended for use in preparing tea or spice, clamps  
8 used for constructing electrical equipment, water pipes designed for  
9 ornamentation in which no detectable amount of an illegal substance  
10 is found or pipes designed and used solely for smoking tobacco,  
11 traditional pipes of an American Indian tribal religious ceremony,  
12 antique pipes that are thirty (30) years of age or older, or drug  
13 testing strips possessed by a person for purposes of determining the  
14 presence of fentanyl or a fentanyl-related compound;

15       19.    "Drug-dependent person" means a person who is using a  
16 controlled dangerous substance and who is in a state of psychic or  
17 physical dependence, or both, arising from administration of that  
18 controlled dangerous substance on a continuous basis. Drug  
19 dependence is characterized by behavioral and other responses which  
20 include a strong compulsion to take the substance on a continuous  
21 basis in order to experience its psychic effects, or to avoid the  
22 discomfort of its absence;

23       20.    "Harm-reduction services" means programs established to:  
24

- a. reduce the spread of infectious diseases related to injection drug use,
- b. reduce drug dependency, overdose deaths, and associated complications, and
- c. increase safe recovery and disposal of used syringes and sharp waste;

21. "Hazardous materials" means materials, whether solid, liquid, or gas, which are toxic to human, animal, aquatic, or plant life, and the disposal of such materials is controlled by state or federal guidelines;

22. "Home care agency" means any sole proprietorship, partnership, association, corporation, or other organization which administers, offers, or provides home care services, for a fee or pursuant to a contract for such services, to clients in their place of residence;

23. "Home care services" means skilled or personal care services provided to clients in their place of residence for a fee;

24. "Hospice" means a centrally administered, nonprofit or for-profit, medically directed, nurse-coordinated program which provides a continuum of home and inpatient care for the terminally ill patient and the patient's family. Such term shall also include a centrally administered, nonprofit or for-profit, medically directed, nurse-coordinated program if such program is licensed pursuant to the provisions of the Uniform Controlled Dangerous Substances Act.

1 A hospice program offers palliative and supportive care to meet the  
2 special needs arising out of the physical, emotional and spiritual  
3 stresses which are experienced during the final stages of illness  
4 and during dying and bereavement. This care is available twenty-  
5 four (24) hours a day, seven (7) days a week, and is provided on the  
6 basis of need, regardless of ability to pay. "Class A" Hospice  
7 refers to Medicare-certified hospices. "Class B" refers to all  
8 other providers of hospice services;

9 25. "Imitation controlled substance" means a substance that is  
10 not a controlled dangerous substance, which by dosage unit  
11 appearance, color, shape, size, markings or by representations made,  
12 would lead a reasonable person to believe that the substance is a  
13 controlled dangerous substance, or is a drug intended solely for  
14 veterinary purposes that is not a controlled dangerous substance and  
15 is being used outside of the scope of practice or normal course of  
16 business, as defined by the State Board of Veterinary Medical  
17 Examiners, or is a federal Food and Drug Administration-approved  
18 drug that is not a controlled dangerous substance and is being used  
19 outside the scope of approval for illicit purposes such as  
20 adulterating or lacing other controlled dangerous substances. In  
21 the event the appearance of the dosage unit or use is not reasonably  
22 sufficient to establish that the substance is an imitation  
23 controlled substance, the court or authority concerned should  
24 consider, in addition to all other factors, the following factors:



- a. statements made by an owner or by any other person in control of the substance concerning the nature of the substance, or its use or effect,
- b. statements made to the recipient that the substance may be resold for inordinate profit,
- c. whether the substance is packaged in a manner normally used for illicit controlled substances,
- d. evasive tactics or actions utilized by the owner or person in control of the substance to avoid detection by law enforcement authorities,
- e. prior convictions, if any, of an owner, or any other person in control of the object, under state or federal law related to controlled substances or fraud, and
- f. the proximity of the substances to controlled dangerous substances;

26. "Immediate precursor" means a substance which the Director has found to be and by regulation designates as being the principal compound commonly used or produced primarily for use, and which is an immediate chemical intermediary used, or likely to be used, in the manufacture of a controlled dangerous substance, the control of which is necessary to prevent, curtail or limit such manufacture;

27. "Initial prescription" means a prescription issued to a patient who:

- 1           a.    has never previously been issued a prescription for  
2                the drug or its pharmaceutical equivalent in the past  
3                year, or
- 4           b.    requires a prescription for the drug or its  
5                pharmaceutical equivalent due to a surgical procedure  
6                or new acute event and has previously had a  
7                prescription for the drug or its pharmaceutical  
8                equivalent within the past year.

9           When determining whether a patient was previously issued a  
10          prescription for a drug or its pharmaceutical equivalent, the  
11          practitioner shall consult with the patient and review the medical  
12          record and prescription monitoring information of the patient;

13          28. "Isomer" means the optical isomer, except as used in  
14          subsections C and F of Section 2-204 of this title and paragraph 4  
15          of subsection A of Section 2-206 of this title. As used in  
16          subsections C and F of Section 2-204 of this title, isomer means the  
17          optical, positional, or geometric isomer. As used in paragraph 4 of  
18          subsection A of Section 2-206 of this title, the term isomer means  
19          the optical or geometric isomer;

20          29. "Laboratory" means a laboratory approved by the Director as  
21          proper to be entrusted with the custody of controlled dangerous  
22          substances and the use of controlled dangerous substances for  
23          scientific and medical purposes and for purposes of instruction;

1       30. "Manufacture" means the production, preparation,  
2 propagation, compounding or processing of a controlled dangerous  
3 substance, either directly or indirectly by extraction from  
4 substances of natural or synthetic origin, or independently by means  
5 of chemical synthesis or by a combination of extraction and chemical  
6 synthesis. "Manufacturer" includes any person who packages,  
7 repackages or labels any container of any controlled dangerous  
8 substance, except practitioners who dispense or compound  
9 prescription orders for delivery to the ultimate consumer;

10       31. "Marijuana" means all parts of the Cannabis plant ~~Cannabis~~  
11 ~~sativa L.~~, whether growing or not; the seeds thereof; the resin  
12 extracted from any part of such plant; and every compound,  
13 manufacture, salt, derivative, mixture, or preparation of such  
14 plant, its seeds, or resin; tetrahydrocannabinols, neutral  
15 compounds, and their corresponding acids, including synthetic  
16 equivalents of the substances contained in the Cannabis plant or in  
17 the resinous extractives of Cannabis, or synthetic substances,  
18 derivatives, and their isomers with similar chemical structure and  
19 pharmacological activity, but shall not include:

- 20           a. the mature stalks of such plant or fiber produced from  
21               such stalks,
- 22           b. oil or cake made from the seeds of such plant,  
23               including cannabidiol derived from the seeds of the  
24               marijuana plant,

- c. any other compound, manufacture, salt, derivative, mixture or preparation of such mature stalks (except the resin extracted therefrom), including cannabidiol derived from mature stalks, fiber, oil or cake,
- d. the sterilized seed of such plant which is incapable of germination,
- e. for any person participating in a clinical trial to administer cannabidiol for the treatment of severe forms of epilepsy pursuant to Section 2-802 of this title, a drug or substance approved by the federal Food and Drug Administration for use by those participants,
- f. for any person or the parents, legal guardians or caretakers of the person who have received a written certification from a physician licensed in this state that the person has been diagnosed by a physician as having Lennox-Gastaut syndrome, Dravet syndrome, also known as severe myoclonic epilepsy of infancy, or any other severe form of epilepsy that is not adequately treated by traditional medical therapies, spasticity due to multiple sclerosis or due to paraplegia, intractable nausea and vomiting, appetite stimulation with chronic wasting diseases, the substance cannabidiol, a nonpsychoactive cannabinoid, found in

1 the Cannabis plant ~~Cannabis sativa L.~~ or any other  
2 preparation thereof, that has a tetrahydrocannabinol  
3 concentration not more than three-tenths of one  
4 percent (0.3%) and that is delivered to the patient in  
5 the form of a liquid,

6 g. any federal Food and Drug Administration-approved drug  
7 or substance, or

8 h. industrial hemp, from the Cannabis plant ~~Cannabis~~  
9 ~~sativa L.~~ and any part of such plant, whether growing  
10 or not, with a combined delta-9 tetrahydrocannabinol  
11 and tetrahydrocannabinolic acid concentration not more  
12 than three-tenths of one percent (0.3%) on a dry-  
13 weight basis, as tested using post-decarboxylation or  
14 other similarly reliable methods, which shall only be  
15 grown pursuant to the Oklahoma Industrial Hemp Program  
16 and may be shipped intrastate and interstate;

17 32. "Medical purpose" means an intention to utilize a  
18 controlled dangerous substance for physical or mental treatment, for  
19 diagnosis, or for the prevention of a disease condition not in  
20 violation of any state or federal law and not for the purpose of  
21 satisfying physiological or psychological dependence or other abuse;

22 33. "Mid-level practitioner" means an Advanced Practice  
23 Registered Nurse as defined and within parameters specified in  
24 Section 567.3a of Title 59 of the Oklahoma Statutes, or a certified

1 animal euthanasia technician as defined in Section 698.2 of Title 59  
2 of the Oklahoma Statutes, or an animal control officer registered by  
3 the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control  
4 under subsection B of Section 2-301 of this title within the  
5 parameters of such officer's duties under Sections 501 through 508  
6 of Title 4 of the Oklahoma Statutes;

7 34. "Narcotic drug" means any of the following, whether  
8 produced directly or indirectly by extraction from substances of  
9 vegetable origin, or independently by means of chemical synthesis,  
10 or by a combination of extraction and chemical synthesis:

- 11 a. opium, coca leaves and opiates,
- 12 b. a compound, manufacture, salt, derivative or  
13 preparation of opium, coca leaves or opiates,
- 14 c. cocaine, its salts, optical and geometric isomers, and  
15 salts of isomers,
- 16 d. ecgonine, its derivatives, their salts, isomers and  
17 salts of isomers, and
- 18 e. a substance, and any compound, manufacture, salt,  
19 derivative or preparation thereof, which is chemically  
20 identical with any of the substances referred to in  
21 subparagraphs a through d of this paragraph, except  
22 that the words narcotic drug as used in Section 2-101  
23 et seq. of this title shall not include decocainized  
24

1                   coca leaves or extracts of coca leaves, which extracts  
2                   do not contain cocaine or ecgonine;

3           35. "Opiate" or "opioid" means any Schedule II, III, IV or V  
4 substance having an addiction-forming or addiction-sustaining  
5 liability similar to morphine or being capable of conversion into a  
6 drug having such addiction-forming or addiction-sustaining  
7 liability. The terms do not include, unless specifically designated  
8 as controlled under the Uniform Controlled Dangerous Substances Act,  
9 the dextrorotatory isomer of 3-methoxy-n-methyl-morphinan and its  
10 salts (dextromethorphan). The terms do include the racemic and  
11 levorotatory forms;

12           36. "Opium poppy" means the plant of the species *Papaver*  
13 *somniferum* L., except the seeds thereof;

14           37. "Palliative care" means a specialized medical service for  
15 people of any age and at any stage of a serious illness or life-  
16 altering medical event that focuses on navigating complex medical  
17 decisions while providing patient autonomy and access to  
18 information. Utilizing a holistic and interdisciplinary team  
19 approach, palliative care addresses physical, intellectual,  
20 emotional, social, and spiritual needs. Palliative care may be  
21 provided in the inpatient, outpatient, or home care setting and  
22 strives to improve quality of life for both the patient and the  
23 family;

1        38. "Patient-provider agreement" means a written contract or  
2 agreement that is executed between a practitioner and a patient  
3 prior to the commencement of treatment for chronic pain using an  
4 opioid drug as a means to:

- 5            a. explain the possible risk of development of physical  
6                    or psychological dependence in the patient and prevent  
7                    the possible development of addiction,
- 8            b. document the understanding of both the practitioner  
9                    and the patient regarding the patient-provider  
10                  agreement of the patient,
- 11           c. establish the rights of the patient in association  
12                  with treatment and the obligations of the patient in  
13                  relation to the responsible use, discontinuation of  
14                  use, and storage of opioid drugs, including any  
15                  restrictions on the refill of prescriptions or the  
16                  acceptance of opioid prescriptions from practitioners,
- 17           d. identify the specific medications and other modes of  
18                  treatment, including physical therapy or exercise,  
19                  relaxation, or psychological counseling, that are  
20                  included as a part of the patient-provider agreement,
- 21           e. specify the measures the practitioner may employ to  
22                  monitor the compliance of the patient including, but  
23                  not limited to, random specimen screens and pill  
24                  counts, and



1           f.     delineate the process for terminating the agreement,  
2                     including the consequences if the practitioner has  
3                     reason to believe that the patient is not complying  
4                     with the terms of the agreement.  Compliance with the  
5                     consent items described in this paragraph shall  
6                     constitute a valid, informed consent for opioid  
7                     therapy.  The practitioner shall be held harmless from  
8                     civil litigation for failure to treat pain if the  
9                     event occurs because of nonadherence by the patient  
10                    with any of the provisions of the patient-provider  
11                    agreement;

12         39.  "Peace officer" means a police officer, sheriff, deputy  
13         sheriff, district attorney's investigator, investigator from the  
14         Office of the Attorney General, or any other person elected or  
15         appointed by law to enforce any of the criminal laws of this state  
16         or of the United States;

17         40.  "Person" means an individual, corporation, government or  
18         governmental subdivision or agency, business trust, estate, trust,  
19         partnership or association, or any other legal entity;

20         41.  "Poppy straw" means all parts, except the seeds, of the  
21         opium poppy, after mowing;

22         42.  "Practitioner" means:

- 23             a.     (1)  a medical doctor or osteopathic physician,  
24                    (2)  a dentist,

- 1 (3) a podiatrist,  
2 (4) an optometrist,  
3 (5) a veterinarian,  
4 (6) an Advanced Practice Registered Nurse under the  
5 supervision of a licensed medical doctor or  
6 osteopathic physician, or a physician assistant,  
7 (7) a scientific investigator, or  
8 (8) any other person,

9 licensed, registered or otherwise permitted to  
10 prescribe, distribute, dispense, conduct research with  
11 respect to, use for scientific purposes or administer  
12 a controlled dangerous substance in the course of  
13 professional practice or research in this state, or

- 14 b. a pharmacy, hospital, laboratory or other institution  
15 licensed, registered or otherwise permitted to  
16 distribute, dispense, conduct research with respect  
17 to, use for scientific purposes or administer a  
18 controlled dangerous substance in the course of  
19 professional practice or research in this state;

20 43. "Production" includes the manufacture, planting,  
21 cultivation, growing or harvesting of a controlled dangerous  
22 substance;

23 44. "Serious illness" means a medical illness or physical  
24 injury or condition that substantially affects quality of life for

1 more than a short period of time. Serious illness includes, but is  
2 not limited to, Alzheimer's disease or related dementias, lung  
3 disease, cancer, heart failure, renal failure, liver failure, or  
4 chronic, unremitting, or intractable pain such as neuropathic pain;

5 45. "State" means the State of Oklahoma or any other state of  
6 the United States;

7 46. "Straw person" or "straw party", also known as a "front",  
8 means a third party who:

- 9 a. is put up in name only to take part in a transaction  
10 or otherwise is a nominal party to a transaction with  
11 no actual control,
- 12 b. acts on behalf of another person to obtain title to  
13 property and executes documents and instruments the  
14 principal may direct respecting property, or
- 15 c. purchases property for another for the purpose of  
16 concealing the identity of the real purchaser or to  
17 accomplish some purpose otherwise in violation of the  
18 Oklahoma Statutes;

19 47. "Surgical procedure" means a procedure that is performed  
20 for the purpose of structurally altering the human body by incision  
21 or destruction of tissues as part of the practice of medicine. This  
22 term includes the diagnostic or therapeutic treatment of conditions  
23 or disease processes by use of instruments such as lasers,  
24 ultrasound, ionizing, radiation, scalpels, probes, or needles that

1 cause localized alteration or transportation of live human tissue by  
2 cutting, burning, vaporizing, freezing, suturing, probing, or  
3 manipulating by closed reduction for major dislocations or  
4 fractures, or otherwise altering by any mechanical, thermal, light-  
5 based, electromagnetic, or chemical means;

6 48. a. "Synthetic controlled substance" means a substance:

- 7 (1) the chemical structure of which is substantially  
8 similar to the chemical structure of a controlled  
9 dangerous substance in Schedule I or II,
- 10 (2) which has a stimulant, depressant, or  
11 hallucinogenic effect on the central nervous  
12 system that is substantially similar to or  
13 greater than the stimulant, depressant, or  
14 hallucinogenic effect on the central nervous  
15 system of a controlled dangerous substance in  
16 Schedule I or II, or
- 17 (3) with respect to a particular person, which such  
18 person represents or intends to have a stimulant,  
19 depressant, or hallucinogenic effect on the  
20 central nervous system that is substantially  
21 similar to or greater than the stimulant,  
22 depressant, or hallucinogenic effect on the  
23 central nervous system of a controlled dangerous  
24 substance in Schedule I or II.

- 1           b.    The designation of gamma-butyrolactone or any other  
2               chemical as a precursor, pursuant to Section 2-322 of  
3               this title, does not preclude a finding pursuant to  
4               subparagraph a of this paragraph that the chemical is  
5               a synthetic controlled substance.
- 6           c.    Synthetic controlled substance does not include:
- 7               (1)   a controlled dangerous substance,  
8               (2)   any substance for which there is an approved new  
9               drug application,  
10              (3)   with respect to a particular person any  
11               substance, if an exemption is in effect for  
12               investigational use, for that person under the  
13               provisions of Section 505 of the Federal Food,  
14               Drug, and Cosmetic Act, 21 U.S.C., Section 355,  
15               to the extent conduct with respect to such  
16               substance is pursuant to such exemption, or  
17               (4)   any substance to the extent not intended for  
18               human consumption before such an exemption takes  
19               effect with respect to that substance.
- 20           d.    Prima facie evidence that a substance containing  
21               salvia divinorum has been enhanced, concentrated, or  
22               chemically or physically altered shall give rise to a  
23               rebuttable presumption that the substance is a  
24               synthetic controlled substance;

1        49. "Tetrahydrocannabinols" ~~means~~ includes all substances that  
2 have been chemically synthesized to emulate the  
3 tetrahydrocannabinols of marijuana, specifically including any  
4 tetrahydrocannabinols derived from industrial hemp; and

5        50. "Ultimate user" means a person who lawfully possesses a  
6 controlled dangerous substance for the person's own use or for the  
7 use of a member of the person's household or for administration to  
8 an animal owned by the person or by a member of the person's  
9 household.

10        SECTION 6.        AMENDATORY        63 O.S. 2021, Section 2-204, as  
11 last amended by Section 3, Chapter 308, O.S.L. 2024 (63 O.S. Supp.  
12 2025, Section 2-204), is amended to read as follows:

13        Section 2-204. The controlled substances listed in this section  
14 are included in Schedule I and include any material, compound,  
15 mixture, or preparation that contains any quantity of the following  
16 hallucinogenic substances, their salts, isomers, and salts of  
17 isomers, unless specifically excepted, when the existence of these  
18 salts, isomers, and salts of isomers is possible within the specific  
19 chemical designation.

20        A. Any of the following opiates including their isomers,  
21 esters, ethers, salts, and salts of isomers, esters, and ethers,  
22 unless specifically excepted, when the existence of these isomers,  
23 esters, ethers, and salts is possible within the specific chemical  
24 designation:

- 1 1. Acetylmethadol;
- 2 2. Allylprodine;
- 3 3. Alphacetylmethadol;
- 4 4. Alphameprodine;
- 5 5. Alphamethadol;
- 6 6. Benzethidine;
- 7 7. Betacetylmethadol;
- 8 8. Betameprodine;
- 9 9. Betamethadol;
- 10 10. Betaprodine;
- 11 11. Clonitazene;
- 12 12. Dextromoramide;
- 13 13. Dextrorphan (except its methyl ether);
- 14 14. Diampromide;
- 15 15. Diethylthiambutene;
- 16 16. Dimenoxadol;
- 17 17. Dimepheptanol;
- 18 18. Dimethylthiambutene;
- 19 19. Dioxaphetyl butyrate;
- 20 20. Dipipanone;
- 21 21. Ethylmethylthiambutene;
- 22 22. Etonitazene;
- 23 23. Etoxeridine;
- 24 24. Furethidine;

- 1 25. Hydroxypethidine;
- 2 26. Isotonitazene;
- 3 27. Ketobemidone;
- 4 28. Levomoramide;
- 5 29. Levophenacylmorphane;
- 6 30. Metonitazene;
- 7 31. Morpheridine;
- 8 32. N-desethyl isotonitazene;
- 9 33. N-pyrrolidino protonitazene;
- 10 34. Noracymethadol;
- 11 35. Norlevorphanol;
- 12 36. Normethadone;
- 13 37. Norpipanone;
- 14 38. Phenadoxone;
- 15 39. Phenampromide;
- 16 40. Phenomorphan;
- 17 41. Phenoperidine;
- 18 42. Piritramide;
- 19 43. Proheptazine;
- 20 44. Properidine;
- 21 45. Protonitazene;
- 22 46. Racemoramide; or
- 23 47. Trimeperidine.
- 24



B. Any of the following opium derivatives, their salts, isomers, and salts of isomers, unless specifically excepted, when the existence of these salts, isomers, and salts of isomers is possible within the specific chemical designation:

1. Acetorphine;
2. Acetyldihydrocodeine;
3. Benzylmorphine;
4. Codeine methylbromide;
5. Codeine-N-Oxide;
6. Cyprenorphine;
7. Desomorphine;
8. Dihydromorphine;
9. Etorphine;
10. Heroin;
11. Hydromorphenol;
12. Methyldesorphine;
13. Methylhydromorphine;
14. Morphine methylbromide;
15. Morphine methylsulfonate;
16. Morphine-N-Oxide;
17. Myrophine;
18. Nicocodeine;
19. Nicomorphine;
20. Normorphine;

- 1        21. Phoclodine;
- 2        22. Thebacon;
- 3        23. N-phenyl-N-[1-(2-phenylethyl)-4-piperidinyl]-acetamide
- 4 (Acetyl fentanyl);
- 5        24. N-phenyl-N-[1-(2-phenylethyl)-4-piperidinyl]-butenamide
- 6 (Crotonyl fentanyl);
- 7        25. N-phenyl-N-[1-(2-phenylethyl)-4-piperidinyl]-2-
- 8 furancarboxamide (Furanyl fentanyl);
- 9        26. N-phenyl-1-(2-phenylethyl)-4-piperidinamine (4-ANPP);
- 10       27. N-(1-phenethylpiperidin-4-yl)-N-
- 11 phenylcyclopropanecarboxamide (Cyclopropyl fentanyl); or
- 12       28. N-phenyl-N-[1-(2-phenylethyl)-4-piperidinyl]-butanamide
- 13 (Butyrl fentanyl).
- 14       C. Any material, compound, mixture, or preparation which
- 15 contains any quantity of the following hallucinogenic substances,
- 16 their salts, isomers, and salts of isomers, unless specifically
- 17 excepted, when the existence of these salts, isomers, and salts of
- 18 isomers is possible within the specific chemical designation:
- 19       1. Methcathinone;
- 20       2. 3, 4-methylenedioxy amphetamine;
- 21       3. 3, 4-methylenedioxy methamphetamine;
- 22       4. 5-methoxy-3, 4-methylenedioxy amphetamine;
- 23       5. 3, 4, 5-trimethoxy amphetamine;
- 24       6. Bufotenine;

- 1 7. Diethyltryptamine;
- 2 8. Dimethyltryptamine;
- 3 9. 4-methyl-2, 5-dimethoxyamphetamine;
- 4 10. Ibogaine;
- 5 11. Lysergic acid diethylamide;
- 6 12. Marijuana;
- 7 13. Mescaline;
- 8 14. N-benzylpiperazine;
- 9 15. N-ethyl-3-piperidyl benzilate;
- 10 16. N-methyl-3-piperidyl benzilate;
- 11 17. Psilocybin;
- 12 18. Psilocyn;
- 13 19. 2, 5 dimethoxyamphetamine;
- 14 20. 4 Bromo-2, 5-dimethoxyamphetamine;
- 15 21. 4 methoxyamphetamine;
- 16 22. Cyclohexamine;
- 17 23. Salvia Divinorum;
- 18 24. Salvinorin A;
- 19 25. Thiophene Analog of Phencyclidine. Also known as: 1-(1-(2-
- 20 thienyl) cyclohexyl) piperidine; 2-Thienyl Analog of Phencyclidine;
- 21 TCP, TCP;
- 22 26. Phencyclidine (PCP);
- 23 27. Pyrrolidine Analog for Phencyclidine. Also known as 1-(1-
- 24 Phenylcyclohexyl) - Pyrrolidine, PCPy, PHP;

- 1 28. 1-(3-trifluoromethylphenyl) piperazine;
- 2 29. Flunitrazepam;
- 3 30. B-hydroxy-amphetamine;
- 4 31. B-ketoamphetamine;
- 5 32. 2,5-dimethoxy-4-nitroamphetamine;
- 6 33. 2,5-dimethoxy-4-bromophenethylamine;
- 7 34. 2,5-dimethoxy-4-chlorophenethylamine;
- 8 35. 2,5-dimethoxy-4-iodoamphetamine;
- 9 36. 2,5-dimethoxy-4-iodophenethylamine;
- 10 37. 2,5-dimethoxy-4-methylphenethylamine;
- 11 38. 2,5-dimethoxy-4-ethylphenethylamine;
- 12 39. 2,5-dimethoxy-4-fluorophenethylamine;
- 13 40. 2,5-dimethoxy-4-nitrophenethylamine;
- 14 41. 2,5-dimethoxy-4-ethylthio-phenethylamine;
- 15 42. 2,5-dimethoxy-4-isopropylthio-phenethylamine;
- 16 43. 2,5-dimethoxy-4-propylthio-phenethylamine;
- 17 44. 2,5-dimethoxy-4-cyclopropylmethylthio-phenethylamine;
- 18 45. 2,5-dimethoxy-4-tert-butylthio-phenethylamine;
- 19 46. 2,5-dimethoxy-4-(2-fluoroethylthio)-phenethylamine;
- 20 47. 5-methoxy-N, N-dimethyltryptamine;
- 21 48. N-methyltryptamine;
- 22 49. A-ethyltryptamine;
- 23 50. A-methyltryptamine;
- 24 51. N, N-diethyltryptamine;

- 1 52. N, N-diisopropyltryptamine;
- 2 53. N, N-dipropyltryptamine;
- 3 54. 5-methoxy-a-methyltryptamine;
- 4 55. 4-hydroxy-N, N-diethyltryptamine;
- 5 56. 4-hydroxy-N, N-diisopropyltryptamine;
- 6 57. 5-methoxy-N, N-diisopropyltryptamine;
- 7 58. 4-hydroxy-N-isopropyl-N-methyltryptamine;
- 8 59. 3,4-Methylenedioxy-methcathinone (Mephylone);
- 9 60. 3,4-Methylenedioxy-pyrovalerone (MDPV);
- 10 61. 3-Methylmethcathinone (Metaphedrone);
- 11 62. 4-Methylmethcathinone (Mephedrone);
- 12 63. 4-methoxymethcathinone;
- 13 64. 4-Fluoromethcathinone;
- 14 65. 3-Fluoromethcathinone;
- 15 66. 1-(8-bromobenzo 1,2-b;4,5-b' difuran-4-yl)-2-aminopropane;
- 16 67. 2,5-Dimethoxy-4-chloroamphetamine;
- 17 68. 4-Methylethcathinone;
- 18 69. Pyrovalerone;
- 19 70. N,N-diallyl-5-methoxytryptamine;
- 20 71. 3,4-Methylenedioxy-N-ethylcathinone (Ethylone);
- 21 72. B-keto-N-Methylbenzodioxolylbutanamine (Butylone);
- 22 73. B-keto-Methylbenzodioxolylpentanamine (Pentylone);
- 23 74. Alpha-Pyrrolidinopentiophenone;
- 24 75. 4-Fluoroamphetamine;

- 1 76. Pentedrone;
- 2 77. 4'-Methyl-a-pyrrolidinohexaphenone;
- 3 78. 2,5-dimethoxy-4-(n)-propylphenethylamine;
- 4 79. 2,5-dimethoxyphenethylamine;
- 5 80. 1,4-Dibenzylpiperazine;
- 6 81. N,N-Dimethylamphetamine;
- 7 82. 4-Fluoromethamphetamine;
- 8 83. 4-Chloro-2,5-dimethoxy-N-(2-methoxybenzyl)phenethylamine  
9 (25C-NBOMe);
- 10 84. 4-Iodo-2,5-dimethoxy-N-(2-methoxybenzyl)phenethylamine  
11 (25I-NBOMe);
- 12 85. 4-Bromo-2,5-dimethoxy-N-(2-methoxybenzy)phenethylamine  
13 (25B-NBOMe);
- 14 86. 1-(4-Fluorophenyl)piperazine;
- 15 87. Methoxetamine;
- 16 88. 3,4-dichloro-N[2-dimethylamino)cyclohexyl]-N-  
17 methylbenzamide;
- 18 89. N-ethyl hexadrone;
- 19 90. Isopropyl-U-47700;
- 20 91. Para-fluorobutyr1 fentanyl;
- 21 92. Para-fluorofentanyl (pFF);
- 22 93. Fluoro isobutryr1 fentanyl;
- 23 94. 3-Hydroxy Phencyclidine (PCP);
- 24 95. 3-methoxy Phencyclidine (PCP);

- 1 96. Flualprazolam; ~~or~~
- 2 97. Flubromazolam; or
- 3 98. Tetrahydrocannabinol.

4 D. Unless specifically excepted or unless listed in a different  
5 schedule, any material, compound, mixture, or preparation which  
6 contains any quantity of the following substances having stimulant  
7 or depressant effect on the central nervous system:

8 1. Fenethylline;

9 2. Mecloqualone;

10 3. N-ethylamphetamine;

11 4. Methaqualone;

12 5. Gamma-Hydroxybutyric Acid, also known as GHB, gamma-  
13 hydroxybutyrate, 4-hydroxybutyrate, 4-hydroxybutanoic acid, sodium  
14 oxybate, and sodium oxybutyrate;

15 6. Gamma-Butyrolactone (GBL) as packaged, marketed,  
16 manufactured, or promoted for human consumption, with the exception  
17 of legitimate food additive and manufacturing purposes;

18 7. Gamma Hydroxyvalerate (GHV) as packaged, marketed, or  
19 manufactured for human consumption, with the exception of legitimate  
20 food additive and manufacturing purposes;

21 8. Gamma Valerolactone (GVL) as packaged, marketed, or  
22 manufactured for human consumption, with the exception of legitimate  
23 food additive and manufacturing purposes;

1        9. 1,4 Butanediol (1,4 BD or BDO) as packaged, marketed,  
2 manufactured, or promoted for human consumption with the exception  
3 of legitimate manufacturing purposes; or

4        10. N-ethylpentylone.

5        E. 1. The following industrial uses of Gamma-Butyrolactone,  
6 Gamma Hydroxyvalerate, Gamma Valerolactone, or 1,4 Butanediol are  
7 excluded from all schedules of controlled substances under this  
8 title:

- 9            a. pesticides,
- 10           b. photochemical etching,
- 11           c. electrolytes of small batteries or capacitors,
- 12           d. viscosity modifiers in polyurethane,
- 13           e. surface etching of metal coated plastics,
- 14           f. organic paint disbursements for water soluble inks,
- 15           g. pH regulators in the dyeing of wool and polyamide  
16           fibers,
- 17           h. foundry chemistry as a catalyst during curing,
- 18           i. curing agents in many coating systems based on  
19           urethanes and amides,
- 20           j. additives and flavoring agents in food, confectionary,  
21           and beverage products,
- 22           k. synthetic fiber and clothing production,
- 23           l. tetrahydrofuran production,
- 24           m. gamma butyrolactone production,



- n. polybutylene terephthalate resin production,
- o. polyester raw materials for polyurethane elastomers and foams,
- p. coating resin raw material, and
- q. as an intermediate in the manufacture of other chemicals and pharmaceuticals.

2. At the request of any person, the Director of the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control may exempt any other product containing Gamma-Butyrolactone, Gamma Hydroxyvalerate, Gamma Valerolactone, or 1,4 Butanediol from being included as a Schedule I controlled substance if such product is labeled, marketed, manufactured, and distributed for legitimate industrial use in a manner that reduces or eliminates the likelihood of abuse.

3. In making a determination regarding an industrial product, the Director, after notice and hearing, shall consider the following:

- a. the history and current pattern of abuse,
- b. the name and labeling of the product,
- c. the intended manner of distribution, advertising, and promotion of the product, and
- d. other factors as may be relevant to and consistent with the public health and safety.

4. The hearing shall be held in accordance with the procedures of the Administrative Procedures Act.

1 F. Any material, compound, mixture, or preparation, whether  
2 produced directly or indirectly from a substance of vegetable origin  
3 or independently by means of chemical synthesis, or by a combination  
4 of extraction and chemical synthesis, that contains any quantity of  
5 the following substances, or that contains any of their salts,  
6 isomers, and salts of isomers when the existence of these salts,  
7 isomers, and salts of isomers is possible within the specific  
8 chemical designation:

- 9 1. JWH-004;
- 10 2. JWH-007;
- 11 3. JWH-009;
- 12 4. JWH-015;
- 13 5. JWH-016;
- 14 6. JWH-018;
- 15 7. JWH-019;
- 16 8. JWH-020;
- 17 9. JWH-030;
- 18 10. JWH-046;
- 19 11. JWH-047;
- 20 12. JWH-048;
- 21 13. JWH-049;
- 22 14. JWH-050;
- 23 15. JWH-070;
- 24 16. JWH-071;

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| 1  | 17. | JWH-072; |
| 2  | 18. | JWH-073; |
| 3  | 19. | JWH-076; |
| 4  | 20. | JWH-079; |
| 5  | 21. | JWH-080; |
| 6  | 22. | JWH-081; |
| 7  | 23. | JWH-082; |
| 8  | 24. | JWH-094; |
| 9  | 25. | JWH-096; |
| 10 | 26. | JWH-098; |
| 11 | 27. | JWH-116; |
| 12 | 28. | JWH-120; |
| 13 | 29. | JWH-122; |
| 14 | 30. | JWH-145; |
| 15 | 31. | JWH-146; |
| 16 | 32. | JWH-147; |
| 17 | 33. | JWH-148; |
| 18 | 34. | JWH-149; |
| 19 | 35. | JWH-150; |
| 20 | 36. | JWH-156; |
| 21 | 37. | JWH-167; |
| 22 | 38. | JWH-175; |
| 23 | 39. | JWH-180; |
| 24 | 40. | JWH-181; |

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| 1  | 41. | JWH-182; |
| 2  | 42. | JWH-184; |
| 3  | 43. | JWH-185; |
| 4  | 44. | JWH-189; |
| 5  | 45. | JWH-192; |
| 6  | 46. | JWH-193; |
| 7  | 47. | JWH-194; |
| 8  | 48. | JWH-195; |
| 9  | 49. | JWH-196; |
| 10 | 50. | JWH-197; |
| 11 | 51. | JWH-198; |
| 12 | 52. | JWH-199; |
| 13 | 53. | JWH-200; |
| 14 | 54. | JWH-201; |
| 15 | 55. | JWH-202; |
| 16 | 56. | JWH-203; |
| 17 | 57. | JWH-204; |
| 18 | 58. | JWH-205; |
| 19 | 59. | JWH-206; |
| 20 | 60. | JWH-207; |
| 21 | 61. | JWH-208; |
| 22 | 62. | JWH-209; |
| 23 | 63. | JWH-210; |
| 24 | 64. | JWH-211; |

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| 1  | 65. | JWH-212; |
| 2  | 66. | JWH-213; |
| 3  | 67. | JWH-234; |
| 4  | 68. | JWH-235; |
| 5  | 69. | JWH-236; |
| 6  | 70. | JWH-237; |
| 7  | 71. | JWH-239; |
| 8  | 72. | JWH-240; |
| 9  | 73. | JWH-241; |
| 10 | 74. | JWH-242; |
| 11 | 75. | JWH-243; |
| 12 | 76. | JWH-244; |
| 13 | 77. | JWH-245; |
| 14 | 78. | JWH-246; |
| 15 | 79. | JWH-248; |
| 16 | 80. | JWH-249; |
| 17 | 81. | JWH-250; |
| 18 | 82. | JWH-251; |
| 19 | 83. | JWH-252; |
| 20 | 84. | JWH-253; |
| 21 | 85. | JWH-262; |
| 22 | 86. | JWH-292; |
| 23 | 87. | JWH-293; |
| 24 | 88. | JWH-302; |

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| 1  | 89.  | JWH-303; |
| 2  | 90.  | JWH-304; |
| 3  | 91.  | JWH-305; |
| 4  | 92.  | JWH-306; |
| 5  | 93.  | JWH-307; |
| 6  | 94.  | JWH-308; |
| 7  | 95.  | JWH-311; |
| 8  | 96.  | JWH-312; |
| 9  | 97.  | JWH-313; |
| 10 | 98.  | JWH-314; |
| 11 | 99.  | JWH-315; |
| 12 | 100. | JWH-316; |
| 13 | 101. | JWH-346; |
| 14 | 102. | JWH-348; |
| 15 | 103. | JWH-363; |
| 16 | 104. | JWH-364; |
| 17 | 105. | JWH-365; |
| 18 | 106. | JWH-367; |
| 19 | 107. | JWH-368; |
| 20 | 108. | JWH-369; |
| 21 | 109. | JWH-370; |
| 22 | 110. | JWH-371; |
| 23 | 111. | JWH-373; |
| 24 | 112. | JWH-386; |

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| 1  | 113. | JWH-387;                       |
| 2  | 114. | JWH-392;                       |
| 3  | 115. | JWH-394;                       |
| 4  | 116. | JWH-395;                       |
| 5  | 117. | JWH-397;                       |
| 6  | 118. | JWH-398;                       |
| 7  | 119. | JWH-399;                       |
| 8  | 120. | JWH-400;                       |
| 9  | 121. | JWH-412;                       |
| 10 | 122. | JWH-413;                       |
| 11 | 123. | JWH-414;                       |
| 12 | 124. | JWH-415;                       |
| 13 | 125. | CP-55, 940;                    |
| 14 | 126. | CP-47, 497;                    |
| 15 | 127. | HU-210;                        |
| 16 | 128. | HU-211;                        |
| 17 | 129. | WIN-55, 212-2;                 |
| 18 | 130. | AM-2201;                       |
| 19 | 131. | AM-2233;                       |
| 20 | 132. | JWH-018 adamantyl-carboxamide; |
| 21 | 133. | AKB48;                         |
| 22 | 134. | JWH-122 N-(4-pentenyl) analog; |
| 23 | 135. | MAM2201;                       |
| 24 | 136. | URB597;                        |

- 137. URB602;
- 138. URB754;
- 139. UR144;
- 140. XLR11;
- 141. A-796,260;
- 142. STS-135;
- 143. AB-FUBINACA;
- 144. AB-PINACA;
- 145. PB-22;
- 146. AKB48 N-5-Fluoropentyl;
- 147. AM1248;
- 148. FUB-PB-22;
- 149. ADB-FUBINACA;
- 150. BB-22;
- 151. 5-Fluoro PB-22; or
- 152. 5-Fluoro AKB-48.

G. In addition to those substances listed in subsection F of this section, unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of a synthetic cannabinoid found to be in any of the following chemical groups:

1. Naphthoylindoles: any compound containing a 3-(1-naphthoyl)indole structure with or without substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl,



1 alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-  
2 (N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-  
3 2-pyrrolidinyl)methyl, 1-(N-methyl-3- morpholinyl)methyl,  
4 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or  
5 halophenyl group, whether or not further substituted on the indole  
6 ring to any extent, and whether or not substituted on the naphthyl  
7 ring to any extent. Naphthoylindoles include, but are not limited  
8 to:

- 9 a. 1-[2-(4-morpholinyl)ethyl]-3-(1-naphthoyl)indole (JWH-  
10 200),
- 11 b. 1-(5-fluoropentyl)-3-(1-naphthoyl)indole (AM2201),
- 12 c. 1-pentyl-3-(1-naphthoyl)indole (JWH-018),
- 13 d. 1-butyl-3-(1-naphthoyl)indole (JWH-073),
- 14 e. 1-pentyl-3-(4-methoxy-1-naphthoyl)indole (JWH-081),
- 15 f. 1-propyl-2-methyl-3-(1-naphthoyl)indole (JWH-015),
- 16 g. 1-hexyl-3-(1-naphthoyl)indole (JWH-019),
- 17 h. 1-pentyl-3-(4-methyl-1-naphthoyl)indole (JWH-122),
- 18 i. 1-pentyl-3-(4-ethyl-1-naphthoyl)indole (JWH-210),
- 19 j. 1-pentyl-3-(4-chloro-1-naphthoyl)indole (JWH-398),
- 20 k. 1-pentyl-2-methyl-3-(1-naphthoyl)indole (JWH-007),
- 21 l. 1-pentyl-3-(7-methoxy-1-naphthoyl)indole (JWH-164),
- 22 m. 1-pentyl-2-methyl-3-(4-methoxy-1-naphthoyl)indole  
23 (JWH-098),
- 24 n. 1-pentyl-3-(4-fluoro-1-naphthoyl)indole (JWH-412),

- 1           o.    1-[1-(N-methyl-2-piperidinyl)methyl]-3-(1-  
2                naphthoyl)indole (AM-1220),  
3           p.    1-(5-fluoropentyl)-3-(4-methyl-1-naphthoyl)indole  
4                (MAM-2201), or  
5           q.    1-(4-cyanobutyl)-3-(1-naphthoyl)indole (AM-2232);

6        2. Naphthylmethylinroles: any compound containing a 1H-indol-  
7 3-yl-(1-naphthyl)methane structure with or without substitution at  
8 the nitrogen atom of the indole ring by an alkyl, haloalkyl,  
9 cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl,  
10 halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-  
11 morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-  
12 morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl,  
13 phenyl, or halophenyl group, whether or not further substituted on  
14 the indole ring to any extent, and whether or not substituted on the  
15 naphthyl ring to any extent. Naphthylmethylinroles include, but are  
16 not limited to, (1-pentylindol-3-yl)(1-naphthyl)methane (JWH-175);

17       3. Naphthoylpyrroles: any compound containing a 3-(1-  
18 naphthoyl)pyrrole structure with or without substitution at the  
19 nitrogen atom of the pyrrole ring by an alkyl, haloalkyl,  
20 cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl,  
21 halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-  
22 morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-  
23 morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl,  
24 phenyl, or halophenyl group, whether or not further substituted on

the pyrrole ring to any extent, and whether or not substituted on the naphthyl group to any extent. Naphthoylpyrroles include, but are not limited to:

- a. 1-hexyl-2-phenyl-4-(1-naphthoyl)pyrrole (JWH-147),
- b. 1-pentyl-5-(2-methylphenyl)-3-(1-naphthoyl)pyrrole (JWH-370),
- c. 1-pentyl-3-(1-naphthoyl)pyrrole (JWH-030), or
- d. 1-hexyl-5-phenyl-3-(1-naphthoyl)pyrrole (JWH-147);

4. Naphthylideneindenes: any compound containing a 1-(1-naphthylmethylene)indene structure with or without substitution at the 3-position of the indene ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted on the indene group to any extent, and whether or not substituted on the naphthyl group to any extent. Naphthylmethylindenes include, but are not limited to, (1-[(3-pentyl)-1H-inden-1-ylidene)methyl]naphthalene (JWH-176);

5. Phenylacetylindoles: any compound containing a 3-phenylacetylindole structure with or without substitution at the nitrogen atom of the indole ring by alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-

(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted on the indole ring to any extent, and whether or not substituted on the phenyl ring to any extent. Phenylacetylindoles include, but are not limited to:

- a. 1-pentyl-3-(2-methoxyphenylacetyl)indole (JWH-250),
- b. 1-(2-cyclohexylethyl)-3-(2-methoxyphenylacetyl)indole (RCS-8),
- c. 1-pentyl-3-(2-chlorophenylacetyl)indole (JWH-203),
- d. 1-pentyl-3-(2-methylphenylacetyl)indole (JWH-251),
- e. 1-pentyl-3-(4-methoxyphenylacetyl)indole (JWH-201), or
- f. 1-pentyl-3-(3-methoxyphenylacetyl)indole (JWH-302);

6. Cyclohexylphenols: any compound containing a 2-(3-hydroxycyclohexyl)phenol structure with or without substitution at the 5-position of the phenolic ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, and whether or not further substituted on the cyclohexyl ring to any extent. Cyclohexylphenols include, but are not limited to:

- a. 5-(1,1-dimethylheptyl)-2-[(1R,3S)-3-hydroxycyclohexyl]-phenol (CP-47,497),
- b. 5-(1,1-dimethyloctyl)-2-[(1R,3S)-3-hydroxycyclohexyl]-phenol (cannabicyclohexanol; CP-47,497 C8 homologue), or
- c. 5-(1,1-dimethylheptyl)-2-[(1R,2R)-5-hydroxy-2-(3-hydroxypropyl)cyclohexyl]-phenol (CP 55, 940);

7. Benzoylindoles: any compound containing a 3-(benzoyl)indole structure with or without substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted on the indole ring to any extent, and whether or not substituted on the phenyl group to any extent. Benzoylindoles include, but are not limited to:

- a. 1-pentyl-3-(4-methoxybenzoyl)indole (RCS-4),
- b. 1-[2-(4-morpholinyl)ethyl]-2-methyl-3-(4-methoxybenzoyl)indole (Pravadoline or WIN 48, 098),
- c. 1-(5-fluoropentyl)-3-(2-iodobenzoyl)indole (AM-694),
- d. 1-pentyl-3-(2-iodobenzoyl)indole (AM-679), or

e. 1-[1-(N-methyl-2-piperidinyl)methyl]-3-(2-iodobenzoyl)indole (AM-2233);

8. Cyclopropoylindoles: Any compound containing a 3-(cyclopropoyl)indole structure with substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted in the indole ring to any extent, and whether or not substituted in the cyclopropoyl ring to any extent. Cyclopropoylindoles include, but are not limited to:

a. 1-pentyl-3-(2,2,3,3-tetramethylcyclopropoyl)indole (UR-144),

b. 1-(5-chloropentyl)-3-(2,2,3,3-tetramethylcyclopropoyl)indole (5Cl-UR-144), or

c. 1-(5-fluoropentyl)-3-(2,2,3,3-tetramethylcyclopropoyl)indole (XLR11);

9. Indole Amides: Any compound containing a 1H-Indole-3-carboxamide structure with or without substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-

1 pyrrolidinyl)methyl, 1-(N-methyl-3- morpholinyl)methyl,  
2 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or  
3 halophenyl group, whether or not substituted at the carboxamide  
4 group by an adamantyl, naphthyl, phenyl, benzyl, quinolinyl,  
5 cycloalkyl, 1-amino-3-methyl-1-oxobutan-2-yl, 1-amino-3,3-dimethyl-  
6 1-oxobutan-2-yl, 1-methoxy-3-methyl-1-oxobutan-2-yl, 1-methoxy-3,3-  
7 dimethyl-1-oxobutan-2-yl or pyrrole group, and whether or not  
8 further substituted in the indole, adamantyl, naphthyl, phenyl,  
9 pyrrole, quinolinyl, or cycloalkyl rings to any extent. Indole  
10 Amides include, but are not limited to:

- 11 a. N-(1-adamantyl)-1-pentyl-1H-indole-3-carboxamide  
12 (2NE1),
- 13 b. N-(1-adamantyl)-1-(5-fluoropentyl)-1H-indole-3-  
14 carboxamide (STS-135),
- 15 c. N-(1-amino-3,3-dimethyl-1-oxobutan-2-yl)-1-pentyl-1H-  
16 indole-3-carboxamide (ADBICA),
- 17 d. N-(1-amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(5-  
18 fluoropentyl)-1H-indole-3-carboxamide (5F-ADBICA),
- 19 e. N-(naphthalen-1-yl)-1-pentyl-1H-indole-3-carboxamide  
20 (NNE1),
- 21 f. 1-(5-fluoropentyl)-N-(naphthalene-1-yl)-1H-indole-3-  
22 carboxamide (5F-NNE1),
- 23 g. N-benzyl-1-pentyl-1H-indole-3-carboxamide (SDB-006),  
24 or

1 h. N-benzyl-1-(5-fluoropentyl)-1H-indole-3-carboxamide

2 (5F-SDB-006);

3 10. Indole Esters: Any compound containing a 1H-Indole-3-  
4 carboxylate structure with or without substitution at the nitrogen  
5 atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl,  
6 cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-  
7 2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-  
8 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl,  
9 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or  
10 halophenyl group, whether or not substituted at the carboxylate  
11 group by an adamantyl, naphthyl, phenyl, benzyl, quinolinyl,  
12 cycloalkyl, 1-amino-3-methyl-1-oxobutan-2-yl, 1-amino-3,3-dimethyl-  
13 1-oxobutan-2-yl, 1-methoxy-3-methyl-1-oxobutan-2-yl, 1-methoxy-3,3-  
14 dimethyl-1-oxobutan-2-yl or pyrrole group, and whether or not  
15 further substituted in the indole, adamantyl, naphthyl, phenyl,  
16 pyrrole, quinolinyl, or cycloalkyl rings to any extent. Indole  
17 Esters include, but are not limited to:

18 a. quinolin-8-yl 1-pentyl-1H-indole-3-carboxylate (PB-  
19 22),

20 b. quinolin-8-yl 1-(5-fluoropentyl)-1H-indole-3-  
21 carboxylate (5F-PB-22),

22 c. quinolin-8-yl 1-(cyclohexylmethyl)-1H-indole-3-  
23 carboxylate (BB-22),  
24



- d. naphthalen-1-yl 1-(4-fluorobenzyl)-1H-indole-3-carboxylate (FDU-PB-22), or
- e. naphthalen-1-yl 1-(5-fluoropentyl)-1H-indole-3-carboxylate (NM2201);

11. Adamantanoylindoles: Any compound containing an adamantanyl-(1H-indol-3-yl)methanone structure with or without substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted in the indole ring to any extent, and whether or not substituted in the adamantyl ring to any extent. Adamantanoylindoles include, but are not limited to:

- a. adamantan-1-yl[1-[(1-methyl-2-piperidinyl)methyl]-1H-indol-3-yl]methanone (AM1248), or
- b. adamantan-1-yl-(1-pentyl-1H-indol-3-yl)methanone (AB-001);

12. Carbazole Ketone: Any compound containing (9H-carbazole-3-yl) methanone structure with or without substitution at the nitrogen atom of the carbazole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-

1 2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl,  
2 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or  
3 halophenyl group, with substitution at the carbon of the methanone  
4 group by an adamantyl, naphthyl, phenyl, benzyl, quinolinyl,  
5 cycloalkyl, 1-amino-3-methyl-1-oxobutan-2-yl, 1-amino-3,3-dimethyl-  
6 1-oxobutan-2-yl, 1-methoxy-3-methyl-1-oxobutan-2-yl, 1-methoxy-3,3-  
7 dimethyl-1-oxobutan-2-yl or pyrrole group, and whether or not  
8 further substituted at the carbazole, adamantyl, naphthyl, phenyl,  
9 pyrrole, quinolinyl, or cycloalkyl rings to any extent. Carbazole  
10 Ketones include, but are not limited to, naphthalen-1-yl(9-pentyl-  
11 9H-carbazol-3-yl)methanone (EG-018);

12 13. Benzimidazole Ketone: Any compound containing  
13 (benzimidazole-2-yl) methanone structure with or without  
14 substitution at either nitrogen atom of the benzimidazole ring by an  
15 alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl,  
16 cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-  
17 piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-  
18 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl,  
19 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or  
20 halophenyl group, with substitution at the carbon of the methanone  
21 group by an adamantyl, naphthyl, phenyl, benzyl, quinolinyl,  
22 cycloalkyl, 1-amino-3-methyl-1-oxobutan-2-yl, 1-amino-3,3-dimethyl-  
23 1-oxobutan-2-yl, 1-methoxy-3-methyl-1-oxobutan-2-yl, 1-methoxy-3,3-  
24 dimethyl-1-oxobutan-2-yl or pyrrole group, and whether or not

1 further substituted in the benzimidazole, adamantyl, naphthyl,  
2 phenyl, pyrrole, quinolinyl, or cycloalkyl rings to any extent.

3 Benzimidazole Ketones include, but are not limited to:

- 4 a. naphthalen-1-yl(1-pentyl-1H-benzo[d]imidazol-2-  
5 1)methanone (JWH-018 benzimidazole analog), or
- 6 b. (1-(5-fluoropentyl)-1H-benzo[d]imidazol-2-  
7 yl)(naphthalen-1-yl)methanone (FUBIMINA); and

8 14. Modified by Replacement: any compound defined in this  
9 subsection that is modified by replacement of a carbon with nitrogen  
10 in the indole, naphthyl, indene, benzimidazole, or carbazole ring.

11 H. Any prescription drug approved by the federal Food and Drug  
12 Administration under the provisions of Section 505 of the Federal  
13 Food, Drug, and Cosmetic Act, Title 21 of the United States Code,  
14 Section 355, that is designated, rescheduled, or deleted as a  
15 controlled substance under federal law by the United States Drug  
16 Enforcement Administration shall be excluded from Schedule I and  
17 shall be prescribed, distributed, dispensed, or used in accordance  
18 with federal law upon the issuance of a notice, final rule, or  
19 interim final rule by the United States Drug Enforcement  
20 Administration designating, rescheduling, or deleting as a  
21 controlled substance such a drug product under federal law, unless  
22 and until the State Board of Pharmacy takes action pursuant to  
23 Section 2-201 of this title. If the Board of Pharmacy does not take  
24 action pursuant to Section 2-201 of this title, the drug product

1 shall be deemed to be designated, rescheduled, or deleted as a  
2 controlled substance in accordance with federal law and in  
3 compliance with the Uniform Controlled Dangerous Substances Act.

4 SECTION 7. AMENDATORY 63 O.S. 2021, Section 2-208, is  
5 amended to read as follows:

6 Section 2-208. The controlled substances listed in this section  
7 are included in Schedule III.

8 A. Unless listed in another schedule, any material, compound,  
9 mixture, or preparation, which contains any quantity of the  
10 following substances or any other substance having a potential for  
11 abuse associated with a stimulant or depressant effect on the  
12 central nervous system:

13 1. Any drug product containing gamma-hydroxybutyric acid,  
14 including its salts, isomers, and salts of isomers, for which an  
15 application has been approved under Section 505 of the Federal Food,  
16 Drug, and Cosmetic Act;

17 2. Any material, compound, mixture, or preparation which  
18 contains any quantity of the following hormonal substances or  
19 steroids, including their salts, isomers, esters and salts of  
20 isomers and esters, when the existence of these salts, isomers,  
21 esters, and salts of isomers and esters is possible within the  
22 specific chemical designation:

- 23 a. Boldenone,  
24 b. Chlorotestosterone,

- 1 c. Clostebol,
- 2 d. Dehydrochlormethyltestosterone,
- 3 e. Dihydrotestosterone,
- 4 f. Drostanolone,
- 5 g. Ethylestrenol,
- 6 h. Fluoxymesterone,
- 7 i. Formebolone,
- 8 j. Mesterolone,
- 9 k. Methandienone,
- 10 l. Methandranone,
- 11 m. Methandriol,
- 12 n. Methandrostenolone,
- 13 o. Methenolone,
- 14 p. Methyltestosterone, except as provided in subsection E
- 15 of this section,
- 16 q. Mibolerone,
- 17 r. Nandrolone,
- 18 s. Norethandrolone,
- 19 t. Oxandrolone,
- 20 u. Oxymesterone,
- 21 v. Oxymetholone,
- 22 w. Stanolone,
- 23 x. Stanozolol,
- 24 y. Testolactone,

z. Testosterone, except as provided in subsection E of  
this section, and

aa. Trenbolone;

3. Any substance which contains any quantity of a derivative of  
barbituric acid, or any salt of a derivative of barbituric acid;

4. Benzphetamine and its salts;

5. Buprenorphine;

6. Butalbital/acetaminophen/caffeine;

7. Chlorhexadol;

8. Chlorphentermine and its salts;

9. Clortermine;

10. Dronabinol;

11. Glutethimide;

~~11.~~ 12. Ketamine, its salts, isomers, and salts of isomers;

~~12.~~ 13. Lysergic acid;

~~13.~~ 14. Lysergic acid amide;

~~14.~~ 15. Mazindol;

~~15.~~ 16. Methyprylon;

~~16.~~ 17. Phendimetrazine;

~~17.~~ 18. Phenylacetone (P2P);

~~18.~~ 19. Sulfondiethylmethane;

~~19.~~ 20. Sulfonethylmethane;

~~20.~~ 21. Sulfonmethane;

~~21.~~ Tetrahydrocannabinols;

22. 1-Phenycyclohexylamine; or

23. 1-Piperidinocyclohexanecarbonitrile (PCC).

Livestock implants as regulated by the Federal Food and Drug Administration shall be exempt.

B. Nalorphine.

C. Unless listed in another schedule, any material, compound, mixture, or preparation containing limited quantities of any of the following narcotic drugs, or any salts thereof:

1. Not more than one and eight-tenths (1.8) grams of codeine or any of its salts, per one hundred (100) milliliters or not more than ninety (90) milligrams per dosage unit, with an equal or greater quantity of an isoquinoline alkaloid of opium;

2. Not more than one and eight-tenths (1.8) grams of codeine or any of its salts, per one hundred (100) milliliters or not more than ninety (90) milligrams per dosage unit, with one or more active, nonnarcotic ingredients in recognized therapeutic amounts;

3. Not more than one and eight-tenths (1.8) grams of dihydrocodeine or any of its salts, per one hundred (100) milliliters or not more than ninety (90) milligrams per dosage unit, with one or more active, nonnarcotic ingredients in recognized therapeutic amounts;

4. Not more than three hundred (300) milligrams of ethylmorphine or any of its salts, per one hundred (100) milliliters

1 or not more than fifteen (15) milligrams per dosage unit, with one  
2 or more ingredients in recognized therapeutic amounts;

3 5. Not more than five hundred (500) milligrams of opium per one  
4 hundred (100) milliliters or per one hundred (100) grams, or not  
5 more than twenty-five (25) milligrams per dosage unit, with one or  
6 more active, nonnarcotic ingredients in recognized therapeutic  
7 amounts; or

8 6. Not more than fifty (50) milligrams of morphine or any of  
9 its salts, per one hundred (100) milliliters or per one hundred  
10 (100) grams with one or more active, nonnarcotic ingredients in  
11 recognized therapeutic amounts.

12 D. The Board of Pharmacy may except by rule any compound,  
13 mixture, or preparation containing any stimulant or depressant  
14 substance listed in subsections A and B of this section from the  
15 application of all or any part of the Uniform Controlled Dangerous  
16 Substances Act if the compound, mixture, or preparation contains one  
17 or more active medicinal ingredients not having a stimulant or  
18 depressant effect on the central nervous system, and if the  
19 admixtures are included therein in combinations, quantity,  
20 proportion, or concentration that vitiate the potential for abuse of  
21 the substances which have a stimulant or depressant effect on the  
22 central nervous system.

23 E. The following hormonal substances or steroids are exempt  
24 from classification as Schedule III controlled dangerous substances:



- 1        1. Estratest, containing 1.25 mg esterified estrogens and 2.5  
2 mg methyltestosterone;
- 3        2. Estratest HS, containing 0.625 mg esterified estrogens and  
4 1.25 mg methyltestosterone;
- 5        3. Premarin with Methyltestosterone, containing 1.25 mg  
6 conjugated estrogens and 10.0 mg methyltestosterone;
- 7        4. Premarin with Methyltestosterone, containing 0.625 mg  
8 conjugated estrogens and 5.0 mg methyltestosterone;
- 9        5. Testosterone Cypionate - Estradiol Cypionate injection,  
10 containing 50 mg/ml Testosterone Cypionate; and
- 11        6. Testosterone Enanthate - Estradiol Valerate injection,  
12 containing 90 mg/ml Testosterone Enanthate and 4 mg/ml Estradiol  
13 Valerate.

14        SECTION 8. This act shall become effective November 1, 2026.

15        Passed the Senate the 25th day of February, 2026.

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\_\_\_\_\_  
Presiding Officer of the Senate

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19        Passed the House of Representatives the \_\_\_\_ day of \_\_\_\_\_,  
20 2026.

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Presiding Officer of the House  
of Representatives

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